SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV063139

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: RESURGENCE FINANCIAL, LLC vs. DEFENDANT: LAUREN TAMBELLINI	

NATURE OF PROCEEDINGS: CLAIM OF EXEMPTION HEARING

RULING

This matter was called on May 29, 2026, and continued to provide Collection Access, LLC with additional time to file a levy packet. Notice of hearing was filed by the Collect Access, LLC on May 4, 2026, on a claim of exemption.

Collect Access is the assignee of the judgment. The Writ of Execution lodged with the court dated October 28, 2025, indicates the total amount due the creditor is $23,695.

Procedurally, the creditor assignee (and not the debtor (Laura Tambellini)) filed the claim of exemption. The creditor appears to ask the court to segregate social security deposits in the debtor's bank account from funds available in her savings to satisfy the debt. If the funds have been commingled or if the account is the result of social security deposits, the creditor will need to segregate the social security funds from other monies available to satisfy the debt.

Appearances are required for the creditor to explain the scope of its request.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202485

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: LELAND SPELMAN, ET AL

vs.

DEFENDANT: STATE FARM GENERAL INSURANCE COMPANY, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – RELIEF- DISCOVERY FACILITATOR PROGRAM
2) MOTION - RECONSIDERATION
3) MOTION - STAY

RULING

There are three motions pending. Plaintiffs Leland Spelman and Linnea Carlson ("Plaintiffs") filed a Motion for Relief from Deemed Admissions; Motion to Stay Summary Judgment Proceedings; and Motion for Reconsideration. The motions were filed on March 27, 2026. Defendant State Farm, et al., filed opposition briefs on June 11, 2026. Plaintiff filed reply briefs on June 15, 2026.

This matter was last called in this department on March 20, 2026, after the court granted Defendant's Motion to Dismiss for Failure to Prosecute, and Motion to have the matters set forth in their Requests for Admission Deemed Admitted for Plaintiffs' Failure to Respond.

Despite prevailing substantively on all issues, counsel for the Defendant indicated that State Farm was nevertheless willing to engage in good faith negotiations with the Plaintiffs to resolve the case. Unfortunately, it appears the settlement discussions were not fruitful. The parties appeared in court for a Case Management Conference on June 24, 2026, with State Farm representing that its settlement offer remains on the table.

The Court reconsiders its March 23, 2026, order granting Defendants State Farm General Insurance Company and Renee Waina's ("Defendants") motion to deem matters admitted as to Plaintiff Oscar Carlson/Estate of Oscar Carlson only, using its inherent authority to reconsider its own interim rulings on its own motion (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840).

BACKGROUND

This is an insurance coverage dispute. Spelman and Linnea Carlson, a married couple, brought this case in their individual capacities and in their capacities as guardians ad litem for three of their family members (their children, Ellie and Julian, and Ms. Carlson's father, Oscar), who are also plaintiffs in this case. (FAC, ¶¶ 1-5.) Oscar Carlson died on January 11, 2024, while this litigation was pending. (See Def. RJN in Opp. to Mtn. for Relief from Deemed Admissions,[1] Ex. 4.)

Plaintiffs allege that all five family members resided at a home insured by State Farm. (FAC, ¶ 10.) They identify Defendant Renee Waina as an agent of State Farm. (*Id.* at ¶¶ 13, 35.) Plaintiffs allege that in two separate incidents (June 15, 2019 and April 15, 2021), the property was "heavily damaged by water and other covered causes of loss." (*Id.* at ¶ 21.) Plaintiffs filed claims with State Farm. (*Ibid.*) They allege that State Farm "paid for some of Plaintiffs' losses, but not all[,]" and that they were entitled to additional funds to cover the losses under the applicable insurance policies. (*Ibid.*) The FAC asserts causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, and negligent misrepresentation.

In September 2025, Defendants served Plaintiffs with their Requests for Admission, Set One ("the RFAs"). (Ellingson Dec. in Opp. to Mot. for Relief from Deemed Admissions, ¶ 4 & Ex. 1.) The RFAs sought responses on behalf of all five Plaintiffs and asked them to admit matters cutting to the heart of their claims. (*Id.* at Ex. 1.) For example, Plaintiffs were requested to admit that State Farm owes them no additional policy benefits arising out of either the June 2019 or the April 2021, incident and that Defendant Renee Waina made no misrepresentations to them. (*Ibid.*) Unfortunately for Plaintiffs, who were unrepresented at the time, they did not respond to the RFAs or request an extension of time to respond. (*Id.* at ¶ 6.) In December 2025, Defendants moved for an order deeming the matters in the RFAs admitted. (See Code Civ. Proc.,[2] § 2033.280.) Plaintiffs, who are *in pro per,* did not oppose the motion. The motion to deem the RFAs was GRANTED on March 23, 2026. The Court also DENIED Defendants' motion to dismiss the case for failure to prosecute (§ 583.410).

PROCEDURAL MATTERS

The moving papers are voluminous and confusing, with Plaintiff raising arguments in one motion that pertain to the other motion. For example, in the reply in support of the motion for reconsideration, Plaintiffs argue that certain evidence they presented in that motion should also be considered in support of their motion for relief from deemed admissions. (See Pltf.'s Reply in Supp. of Mot. for Reconsideration, p. 3.) In connection with the motion to dismiss, Plaintiffs filed an untimely document titled "Plaintiffs' Supplemental Opposition to Defendants' Motion to Dismiss for Failure to Prosecute." Plaintiffs argue that the court did not consider arguments presented in "Plaintiffs' Supplemental Opposition to Defendants' Motion to Dismiss for Failure to Prosecute" when it ruled on Defendants' separate motion to deem matters admitted.

[1] Defendants' requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) Defendants mistakenly listed the filing date for the Petition for Letters of Administration for which they seek judicial notice as March 29, 2026. The Court judicially notices the Petition for Letters of Administration filed in Case No. PR0001787 on April 29, 2026 and set for hearing on June 25, 2026.

[2] All further undesignated statutory references are to the Code of Civil Procedure.

While the court has attempted to review the filed documents and patch together relevant arguments made by the Plaintiff, it is up to the moving party to direct the court to the arguments to be considered in the moving papers. Based on its inherent power "[t]o provide for the orderly conduct of proceedings before it" (§ 128, subd. (a)(3)), when it rules on each of the instant motions, the Court considers arguments presented in the submissions directed at that motion.

Plaintiffs also filed a "supplemental exhibit," which was a supplemental brief, and an accompanying declaration. Submitting additional arguments and/or evidence in support of a motion weeks after the day the motion is filed, outside of a reply brief, is improper. Nevertheless, the Court will consider those supplemental materials.

I. *SUA SPONTE* RECONSIDERATION OF PRIOR RULING

A court has inherent authority to reconsider its own interim rulings on its own motion. (*Even Zohar*, *supra*, 61 Cal.4th 830, 840.) The exercise of this power is not subject to the confines of Code of Civil Procedure, section 1008 (governing statutory motions for reconsideration). (*Ibid.*; *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 216-217.) The Court is exercising this power to reconsider its March 23, 2026, order granting Defendants' motion to deem matters admitted as to Plaintiff Oscar Carlson/the Estate of Oscar Carlson only.

When Oscar Carlson died in January 2024, his claims against Defendants passed to the personal representative of his estate or, if none, his successor in interest. (§ 377.31.) No personal representative of Oscar Carlson's estate has yet been appointed even though he died two and a half years ago. (See Petition for Letters of Administration filed on April 29, 2026 in Marin County Superior Court Case No. PR0001787, currently pending.) No one has submitted the declaration required to succeed to Oscar Carlson's interest in this litigation as successor in interest. (See § 377.32.) Even if there were a personal representative or a successor in interest, for the Court to permit one of those to continue to prosecute Oscar Carlson's claim against Defendants, the Plaintiff would need to seek permission from the court. (§ 377.31.) Plaintiffs have yet to file that motion.

Defendants served the RFAs on Oscar Carlson's estate by serving them upon Spelman and Linnea Carlson as personal representatives of the estate. (Ellingson Dec. in Opp. to Mot. for Relief from Deemed Admissions, Ex. 1.) Spelman and Linnea Carlson were also served with the RFAs in their individual capacities. (*Ibid.*) Plaintiffs have not been appointed personal representative of the estate, although the court was informed by the Plaintiffs on June 24, 2026, during the Case Management Conference that the probate court will rule on the matter on June 25. The parties were ordered to meet and confer on the issue at 11 a.m. following the hearing on June 25.

Defendants argue that Linnea Carlson, as Oscar Carlson's daughter, is presumptively a beneficiary of his estate, and that this means she is empowered to accept service on behalf of her deceased father. They rely on *Ring v. Harmon* (2021) 72 Cal.App.5th 844, which states that where a personal representative of an estate cannot or will not act to vindicate an injury to the estate, "it is appropriate to allow the beneficiary to pursue an action" on the estate's behalf. (72 Cal.App.5th 844, 850.) Ring does not consider whether a beneficiary is *required* to pursue an action. *Ring* does not aid Defendants' attempt to require Linnea Carlson to step in for her deceased father.

Defendants also argue that Spelman and Linnea Carlson are equitably estopped from asserting that they are not personal representatives of Oscar Carlson's estate or that they do not have power to act on the estate's behalf. This argument is based on a proof of service Plaintiffs' former counsel executed upon their withdrawal, which identified Spelman and Linnea Carlson as personal representatives of Oscar Carlson's estate, and on a Notice of Death filing Linnea Carlson submitted in March 2026 in which she purported to speak "on behalf of all plaintiffs." (Def. RJN in Opp. to Mtn. for Relief from Deemed Admissions, Exs. 3-4.) The Court is not persuaded that one can invoke estoppel to the detriment of one person (here, Oscar Carlson or his estate) based on statements or conduct by somebody else (here, Spelman and Linnea Carlson). (See *Kleinecke v. Montecito Water Dist.* (1983) 147 Cal.App.3d 240, 245 ["The doctrine of equitable estoppel is based on the theory that a party who by *his declarations or conduct* misleads another to his prejudice should be estopped to prevent him from obtaining the benefits of *his misconduct*."] [emphasis added].)

Accordingly, the Court reconsiders its ruling on the motion to deem matters admitted and denies that motion as to Plaintiff Oscar Carlson/Estate of Oscar Carlson only. The estate portion of the case shall proceed, with the estate – or its representative authorized to respond to the RFAs service on Oscar Carlson not later than July 31, 2026.

The court remains hopeful that Plaintiffs will again find counsel to represent them. The individual plaintiffs are entitled to proceed *pro per* if they wish, but Oscar Carlson's estate must proceed with legal representation. (*Hansen v. Hansen* (2003) 114 Cal.App.4th 618, 621 ["A person who is unlicensed to practice law and who represents a decedent's estate cannot appear in *propria persona* on behalf of the estate in matters outside the probate proceedings."].)

Plaintiffs are to file a successor in interest request pursuant to Code of Civil Procedure, section 377.31, with counsel for the estate entering an appearance on behalf of this plaintiff, by July 31, 2026. Otherwise, the Court *may* dismiss the estate's claim for failure to prosecute on its own motion. (See §§ 583.430; 583.420, subd. (a)(2)(A).) The court is hopeful the parties will continue to meet and confer in an effort to resolve the case.

Court references to "Plaintiffs" are limited to Plaintiffs Leland Spelman and Linnea Carlson, and exclude Oscar Carlson and his estate.

II. MOTION FOR RELIEF FROM DEEMED ADMISSIONS

A. LEGAL STANDARD

"If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]" (§ 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requested be deemed admitted." (§ 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (§ 2033.280, subd. (c).) "Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300." (§ 2033.410, subd. (a).)

Code of Civil Procedure, section 2033.300 provides that a court may grant a party leave to "withdraw or amend an admission made in response to a request for admission[.]" (§ 2033.300, subd. (a).) This provision applies to deemed admissions resulting from an order granting a motion under Section 2033.280. (*Wilcox v. Birdthistle* (1999) 21 Cal.4th 973, 977 [interpreting the version of Section 2033.300 in force prior to the non-substantive reorganization of the Civil Discovery Act in the early 2000s].) A court has discretion to grant this relief provided "it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (§ 2033.300, subd. (b).)

B. DISCUSSION

The grounds for relief under Section 2033.300 are that the moving party's response to requests for admission was the product of a mistake, of inadvertence, or of excusable neglect. (§ 2033.300, subd. (b).) The question before the Court is whether circumstances amounting to Plaintiffs' mistake, inadvertence, or excusable neglect existed and brought about the March 23, 2026 order granting Defendants' motion to deem matters admitted. The Court issued that order based on Defendants' showing that Plaintiffs never responded to the RFAs. (March 23, 2026 Order, p. 6.) Plaintiffs did not oppose the motion[3] and there was no evidence before the Court establishing that Plaintiffs, prior to the hearing on the motion to deem matters admitted, served Defendants with proposed responses to the RFAs that were substantially compliant with the applicable statutes.

A court is required to grant a motion to deem matters admitted under these circumstances. (§ 2033.280, subd. (c).) Because of the basis for the Court's ruling on the motion to deem matters admitted, to prevail on the instant motion for relief, Plaintiffs need to show that some sort of mistake, inadvertence, or excusable neglect is the reason they never responded to the RFAs. Arguments that the RFAs or the motion to deem matters admitted were defective are irrelevant except to the extent Plaintiffs offer those circumstances to somehow justify their failure to respond to the RFAs or to timely submit proposed responses.

Plaintiffs argue that their nonresponse to the RFAs was the product of excusable neglect because they were, or at least believed they were, "legally prohibited" from responding. (Memorandum, p. 3.) They explain that the RFAs were served on Spelman and Linnea Carlson as personal representatives of the estate of plaintiff Oscar Carlson, a status neither Spelman nor Linnea Carlson holds, so they were unable to respond on behalf of the estate. Plaintiffs maintain that this somehow justifies all five plaintiffs' failures to respond to the RFAs, including Spelman's and Linnea Carlson's failures to respond in their individual capacities, because "[t]he RFAs were contained in a single document bundling all parties – including the deceased Oscar Carlson – as one indivisible group" and "[t]here

[3] Plaintiffs argue that they did oppose the motion because they raised arguments directed at that motion in their submission entitled "Plaintiffs' Supplemental Opposition to Defendants' Motion to Dismiss for Failure to Prosecute." That Opposition was not filed as an opposition to the motion to deem matters admitted under Section 2033.280. It was also untimely. The Court properly treated the motion to deem matters admitted as unopposed.

was no mechanism to respond individually without purporting to respond for the estate." (Memorandum, p. 4.)

The matter will proceed on behalf of the estate of Oscar Carlson if the estate is able to secure counsel, even if for the limited purpose of settlement negotiation purposes.

While the court will give considerable leeway to *pro per* litigants, they are not entitled to special treatment or leniency based on their self-represented status. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1054, 1056.) Here, the Plaintiffs' failure to respond to the RFAs was not "excusable" neglect. (§ 2033.300, subd. (b).)

Plaintiffs insist they made an honest mistake of law, referring to *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 611, which stated that such a mistake is a valid ground for relief under Code of Civil Procedure, section 473, subdivision (b) "when the legal problem posed ' "is complex and debatable." ' " (*Id.* at p. 611 [quoting *McCormick v. Board of Supervisors* (1988) 198 Cal.App.3d 352, 360 (superseded by statute on unrelated grounds as stated in *County of Sacramento v. Superior Court* (2009) 180 Cal.App.4th 943, 950-951)].) The Court will assume for purposes of argument that this case has some application to Section 2033.300. There was no complex or debatable legal question as to whether Plaintiffs were permitted to simply not respond to the RFAs. A party who is served with requests for admission is required to either respond to them, which it may do exclusively by objecting (i.e., without admitting or denying anything) (§ 2033.210, subd. (b)), or file a timely motion for a protective order (§ 2033.080). The Plaintiffs did not attempt to respond to the discovery after it was served.

Plaintiffs' contentions regarding whether the RFAs were properly served on Spelman and Linnea Carlson as personal representatives for Oscar Carlson's estate did not justify their failing to respond to the RFAs. This does not constitute "excusable neglect[.]" (§ 2033.300, subd. (b).) Nor can this be considered "mistake" or "inadvertence" (*ibid.*), because Spelman and Linnea Carlson chose not to respond to the RFAs. (Joint Dec. of Spelman & Carlson in Supp. of Motion for Relief from Deemed Admissions, ¶ 10.)

Next, Plaintiffs contend that they were not given proper notice of the hearing on the motion to deem matters admitted because the moving papers left the spot designated for the hearing date blank.[4] This does not explain why they did not respond to the RFAs or oppose the motion, as Plaintiffs clearly knew of the existence of the motion and the date and time of the hearing and do not contend otherwise. The Court is equally unpersuaded by Plaintiffs' argument that its order is invalid because Defendants' motion to deem matters admitted did not complete the discovery facilitator process. This circumstance does not amount to mistake, inadvertence, or excusable neglect that caused Plaintiffs to refrain from responding to the RFAs or from serving proposed responses prior to the hearing on the motion to deem matters admitted, which needed to happen for the Court to be legally permitted to deny the motion. (§ 2033.280, subd. (c).)

Finally, Plaintiffs argue they were dealing with: the death of a close relative eight months before the RFAs were served; caring for a child with special needs; personal health issues; and dealing with the

[4] This is standard practice. The clerk of court sets the hearing date after the motion is filed. Defendants filed amended moving papers stating the hearing date after the clerk assigned it.

financial stressor of losing their family home (a reference to the losses at the center of this case, which occurred in 2019 and 2021). While the court is sympathetic, these hardships do not excuse Plaintiffs from the duty to respond to discovery in a case they themselves brought.

Plaintiffs have not offered evidence of “mistake, inadvertence, or excusable neglect” that brought about the March 23, 2026, order deeming the RFAs admitted. The motion for relief the court’s finding that the RFAs are admitted is DENIED.

III. MOTION FOR RECONSIDERATION

A. LEGAL STANDARD

“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (§ 1008, subd. (a).) The motion must be “based upon new or different facts, circumstances, or law” and must be filed “within 10 days after service upon the [movant] of written notice of entry of the order[.]” (*Ibid.*) It must be accompanied by an affidavit stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*) “The party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time.” (*Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1457.)

“[B]ecause the requirements of section 1008 are jurisdictional with respect to applications by civil parties litigant for reconsideration of previous orders or renewing previously denied motions, any action by the trial court on such an application not in compliance with the dictates of section 1008 would be in excess of its jurisdiction.” (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 394, fn. 22.)

B. DISCUSSION

Plaintiffs ask the court to reconsider its ruling on a prior motion “based upon new or different facts, circumstances, or law[.]” (§ 1008.) This means the “new or different facts, circumstances, or law” must be relevant to the questions presented by the motion the movant wants the court to reconsider. Whether the matters sought to be deemed admitted are, in fact, true is irrelevant to a motion to deem matters admitted. (See § 2033.280.) Plaintiffs’ content that they have “meritorious denials” to each of the RFAs. This contention is also not new evidence. Those new denials are irrelevant to a motion under Section 2033.280.

Plaintiffs also rely on “new” legal authority they claim establishes that Spelman and Linnea Carlson properly did not respond to the RFAs as personal representatives of Oscar Carlson’s estate, and that service of the RFAs on Carlson’s estate was void. These apply to Plaintiff’s opposition to the motion to deem matters admitted, and cannot be raised now when they ask for reconsideration. (See *Glade, supra,* 38 Cal.App.4th 1441, 1457.)

Plaintiffs also argue that certain statements made at the hearing on the motion to deem matters admitted are "new facts" justifying reconsideration. Events occurring at the hearing on the motion are necessarily not "new" relative to the time the court issued its final ruling on the motion and so cannot support a motion for reconsideration.

In its ruling on Defendants' motion to deem matters admitted and concurrent motion to dismiss the case for failure to prosecute, the Court referred to the circumstances of Plaintiffs' prior counsel's withdrawal from the representation in July 2024. (March 23, 2026 Order, p. 4.) Plaintiffs argue that the Court's comment on the withdrawal incorrectly "negative[ly] characteriz[ed]" Plaintiffs' conduct. (Memorandum, p. 9.) They claim they never had a chance to address their former attorneys' stated reasons for withdrawing from the representation and that this is a "new circumstance" warranting reconsideration of the motion to deem matters admitted. The circumstances of the Plaintiffs' former counsel's withdrawal are irrelevant to the motion to deem matters admitted.

The Court discussed the attorneys' departure from the case in its ruling on the concurrently-decided motion to dismiss the case for failure to prosecute. The Court declines Plaintiffs' invitation to invoke its inherent authority to reconsider the portion of its March 23, 2026 "resting on . . . unrebutted characterizations" relating to Plaintiffs' prior counsel's withdrawal (Reply, pp. 1-2), because there is nothing to reconsider.

The Court recognized Plaintiffs' difficulty in obtaining counsel, *which was Plaintiffs' primary argument in opposition to the motion to dismiss,* and then it decided that motion in Plaintiffs' favor.

The motion for reconsideration is DENIED.

C. MOTION TO STAY SUMMARY JUDGMENT PROCEEDINGS

During the Case Management Conference held on June 24, 2026, Defendant explained that the Motion for Summary Judgment was filed with the court on or about June 23.

Plaintiffs request an order staying all summary judgment proceedings pending resolution of the motion for relief from deemed admissions and motion for reconsideration. The request for a stay is moot.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202928

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: JENNIFER LARSEN vs. DEFENDANT: SHIRLEY DERNER, ET AL.	

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff's Motion to Compel Production of Documents served November 1, 2022.

The matter was called on June 12, 2026, as regularly scheduled and continued for two weeks to June 29, 2026, to provide additional time for the parties to fully participate in the Discovery Facilitator program. The court appreciates the cooperation and patience of the parties.

Pursuant to Marin County Rule, Civil 2.13B, on May 12, 2026, Gautam Jagannath, Esq. was appointed to preside as Discovery Facilitator. The matter before the Court is a narrow discovery dispute concerning two document requests, both directed at insurance: Plaintiff's Requests for Production of Documents, Set One, Nos. 7 and 18. Mr. Jagannath lodged his report with the court on or about June 18, 2026.

Plaintiff served her Requests for Production, Set One, on November 1, 2022. All three defendants served verified responses, on or about December 9, 2022. After the meet and confer process, on February 13, 2023, defendants served verified supplemental responses for Rick Oliva and for Cheryl Oliva as trustee. Those supplements, among other things, supplemented Request No. 7 with a statement of compliance and a document production.

A motion to compel a further response to a demand for the production of documents must be made promptly. Code of Civil Procedure provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310(c).)

This 45-day limit is a statutory deadline. Once the period runs without a timely motion or a written extension, the Court is without authority to order a further response. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) The clock runs from service of the verified response. A response containing both substantive responses and objections must be verified before the 45-day period begins to run. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127.) Responses containing only objections are not required to be verified, but Golf & Tennis did not fully resolve how the 45-day deadline applies to an objections-only response.

The main issue here is timeliness. The discovery was exchanged in December 2022, with verified responses. The clock started, and it expired at some point likely in early 2023. Defendant argues that the motion is three years too late and there is no written agreement to either extend the discovery or keep the response deadline open, indefinitely. Plaintiff agrees that there is no written agreement memorializing any such extension.

The court acknowledges that there may have been confusion relative to whether there was an extension granted because Plaintiff was represented by several lawyers, and the insurer substituted coverage counsel. These type of representation issues magnify the importance of memorializing agreements and keeping an accurate client file.

Plaintiff's Motion to Compel Further Responses to Requests for Production Nos. 7 and 18 is DENIED as untimely under Code of Civil Procedure section 2031.310(c). The denial is without prejudice. Plaintiff may choose to re-tailor her requests directed at the insurance information she seeks, and the court hopes to avoid further conflict on the same issue raised. Plaintiff may not re-propound the identical Requests Nos. 7 and 18, or materially duplicative requests, for the purpose of reviving the expired deadline.

Sanctions are not warranted given the number of law firms that have touched the file for both parties, causing genuine confusion about discovery deadlines.

This case should now be ready for a trial date, which will be set at the next Case Management Conference currently scheduled for September 21, 2026.

The parties should anticipate a February 2027, trial date.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2300292

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: SARAH MALAGA

vs.

DEFENDANT: COMMUNITY BANKERS SERVICES CORPORATION, ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL OF SETTLEMENT

RULING

On May 21, 2026, Plaintiff Sarah Malaga filed a motion seeking preliminarily approval of a representative wage and hour case under California's Private Attorney General Act ("PAGA"), Labor Code § 2698, et seq.

Plaintiff asks that the Court to preliminarily approve this representative PAGA settlement, in which Defendants Community Banker Services Corporation and WestAmerica Bancorporation (together, "Defendants") have agreed to pay $167,500.00. After deducting administration costs and requested attorneys' fees and costs, approximately $88,592.02 will be available for distribution to Aggrieved Employees and the LWDA. The employee payout portion of the settlement provides for twenty-five percent (25%) of this amount will be allocated to Aggrieved Employees and the remaining seventy-five percent (75%) to the Labor Workforce and Development Agency ("LWDA").

Defendant stipulates to the settlement and did not file an opposition.

The terms are:

1. Defendant will pay a maximum of $167,500.00, of which, $88,592 will be distributed on *pro rata* basis according to the total worked by each aggrieved employee after the payment to the LWDA during the claims period. There are approximately 224 employees who will benefit from the settlement. The LWDA will receive $66,440 of the settlement, with the remaining $22,148 flowing to the employees.

2. The settlement period is from November 30, 2021, to July 1, 2022.

3. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties.

4. The Settlement will release specified wage-and-hour specified claims for PAGA Penalties for all Aggrieved Employees.

5. The release is narrowed to include all claims for civil penalties under the PAGA during the PAGA period.

6. Funds available after claims administration is proposed to be directed to the State of California's Unclaimed Property Fund (or other recipient as directed by the Court).

7. Cost of settlement administration shall be up to $4,250 of the settlement fund;

8. Enhancement/Service Awards to Plaintiff: Defendant will not oppose the application for Representative Enhancement of up to $2,500 for each Plaintiff, to be paid from the settlement fund;

9. Fees and Costs: Defendant will not oppose Counsel's application for fees of up to one third (1/3) of the Gross Settlement Amount (currently estimated to be $55,833.33). Counsel's stated lodestar is 116,155.00. The requested cost recovery of $18,000 is also preliminarily approved.

Counsel to appear to explain why the State is slotted to receive a larger recovery than the aggrieved workers.

The parties shall meet and confer to determine a more appropriate recipient of residue funds other than the state common fund. As stated in the unopposed motion for approval, the public policy purpose of PAGA is to enhance the state's ability to enforce labor laws by deputizing private citizens to act as law enforcement proxies). "[A] trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*See Moniz v. Adecco USA, Inc.*, 72 Cal. App. 5th 56, 77 (2021) (emphasis added); see also Kang v. Wells Fargo Bank, N.A., 2021 WL 5826230, at *15 (N.D. Cal., 2021) (evaluating a PAGA settlement under the standard of whether the settlement terms "are fundamentally fair, reasonable, and adequate in view of PAGA's public policy goals")).

Here, the settlement vindicates the rights of Aggrieved Employees who are alleged to have experienced possible wage and hour violations under the PAGA. The parties are ordered to meet and confer to discuss an award of the residual settlement to a non-profit organization or collegiate educational program with a mission statement more closely aligned to the policy objective of PAGA.

The settlement expressly provides for its enforcement pursuant to Cal. Civil Code of Procedure §664.6, with a prevailing party fee provision.

Appearances are required to discuss the fund residue. The notice documents shall be updated because this issue is unresolved.

Plaintiff to submit the final preliminary order for entry.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have

been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2301537

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: PHAEDRANA NOOHRA vs. DEFENDANT: TAMARA WILLAT	

NATURE OF PROCEEDINGS: 1) MOTION – PROTECTIVE ORDER -DISCOVERY FACILITATOR PROGRAM
2) MOTION – SANCTIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff PHAEDRANA NOOHRA filed a motion for protective order on March 30, 2026, pursuant to Cal. Code of Civil Procedure §§ 2025.420, 2030.090, 2031.060 and California Constitution Article I, Section 1. 6. The motion seeks to limit and condition certain discovery requests served by Defendant TAMARA WILLAT that plaintiff believes requests sensitive personal identifying information, third-party data, and confidential materials, the disclosure of which presents disproportionate risk and exceeds the proper scope of discovery.

Defendant responds to the motion arguing the motion is go-around from the Court's order of March 5, 2026, in which the court granted Defendant's motion to compel discovery, ordering Plaintiff to provide code-compliant responses no later than March 30, 2026. Defendant argues that the Plaintiff seeks a protective order directed at the same discovery covered by the March 5 Order, and incorporates the same privilege log dates February 14, 2026, which was addressed by the prior motion ruled in favor of the Defendant.

Furthermore, the Defendant argues that Plaintiff has yet to respond to discovery as ordered on March 5, 2026. Here, prior to the order, Plaintiff's responses were due on October 23, 2025. The court issued an order that plaintiff respond to the outstanding discovery without objection. Filing a motion to work around the order defeats the purpose of , they have been waived" (Exh. B at 5:6 8), and the Court granted precisely that relief because discovery must be free flowing to both parties, without frivolous objections and other motion practice hurdles.

California discovery rules are to be liberally construed in favor of disclosure. Discovery statutes must be interpreted broadly to facilitate the exchange of information between parties. "[A]bsent a showing that substantial interests will be impaired by allowing discovery, liberal policies of discovery rules will generally counsel against overturning a trial court's decision granting discovery and militate in favor of overturning a decision to deny discovery" (*Flagship Theatres* *of Palm Desert, LLC v. Century Theatres, Inc.*, 198 Cal.App.4th 1366 (2011), *Forthmann v. Boyer*, 97 Cal.App.4th 977 (2002)). The statutory provisions governing discovery methods "must be liberally construed in favor of discovery and reviewing courts must not extend statutory limitations upon discovery beyond limits expressed by legislature". (*Irvington-Moore, Inc. v. Superior Court*, 14 Cal.App.4th 733 (1993)).

While the court will give considerable leeway to *pro per* litigants, they are not entitled to special treatment or leniency based on their self-represented status. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1054, 1056.)

In addition, the motion for a protective order is not timely. A protective order must be sought "promptly," and the moving party bears the burden of demonstrating good cause. (Code Civ. Proc., §§ 2030.090, subd. (a), 2031.060, subd. (a), 2025.420, subd. (a).) Plaintiff filed the motion in March 2026, many months after Defendant first sought the information in October 2025. Plaintiff's unsuccessful opposition to Defendant's does not create an avenue to the filing of a protective order regarding information that is owed to the Defendant pursuant to the court's prior discovery order.

Plaintiff's Motion for a Protective Order is DENIED.

Defendant has incurred $3,107.85 in attorneys' fees for time spent preparing the opposition, and for time that will be spent preparing for and attending the hearing. Code Civ. Proc., §§ 2025.420, subd. (h) provides that the Court "shall" impose a monetary sanction against any party who unsuccessfully makes a motion for a protective order, unless it finds the party acted with substantial justification or other circumstances make the sanction unjust. (see, Code Civ. Proc., §§ 2025.420, subd. (h), 2030.090, subd. (d), 2031.060, subd. (h).)

Defendant's request for sanctions is GRANTED; however it is discounted down to $1,650.00, and payable within 30 days of entry of order.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0000974

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: GERALDINE RANDALL vs. DEFENDANT: VILLA MARIN HOMEOWNERS ASSOCIATION	

NATURE OF PROCEEDINGS: 1) MOTION – DISMISS
2) MOTION - ENFORCE

RULING

There are two motions on calendar. On May 22, 2026, Defendant Kirk Beales filed a Motion to Enforce a Settlement Agreement pursuant to Code of Civil Procedure §664.6. On April 8, 2026, Plaintiff/Cross-Defendant Geraldine Randall filed a Motion to Dismiss Action.

Both the motions seek multiple forms of relief. These motions are granted in part and denied in part, as more specifically set forth in the "Ruling" section below.

A. Procedural Background

Plaintiff/Cross-Defendant Geraldine Randall ("Randall") filed her initial Complaint against Defendant/Cross-Complainant Villa Marin Homeowners Association ("HOA") on September 25, 2023, alleging that she is a homeowner at Villa Marin Properties senior living property, which is managed by the HOA. Randall alleged, among other things, that the HOA failed to purchase insurance as required, retaliated against Randall for raising the insurance issue by rejecting her reasonable maintenance requests and harassing her, mismanaged the skilled nursing facility, breached an initial settlement agreement between the parties, and improperly adopted election rule changes. Randall asserted causes of action against the HOA for violations of the Davis-Stirling Common Interest Development Act, breach of contract, and for declaratory judgment. Randall filed a First Amended Complaint on April 19, 2024, adding HOA Vice President Kirk Beales ("Beales") as a defendant, additional factual allegations, an additional breach of contract cause of action, and a cause of action for breach of fiduciary duty.

On July 2, 2024, the HOA filed a Cross-Complaint against Randall for breach an initial settlement agreement and breach of covenants in the HOA's CC&Rs reached between the parties.

After attending a settlement conference before Hon. Andrew Sweet on February 6, 2026, the parties executed a written Settlement Agreement (the "Agreement"), a copy of which is attached as Exhibit 1 to the Declaration of Geraldine Randall and Exhibit 3 to the Declaration of Edward Romero.

On March 25, 2026, Randall filed a Notice of Settlement of Entire Case, conditional on the satisfactory performance of terms in the Agreement.

B. Motions Regarding the Case Resolution

Both Randall and the HOA/Beales have filed motions relating to the Agreement. For purposes of clarity, the HOA and Beales will collectively be referred to as "Defendants".

Randall seeks an order:

1. to enforce the settlement pursuant to Code of Civil Procedure § 664.6(a), asking the court to retain jurisdiction to enforce their Settlement Agreement, as expressly set forth in Paragraph 10.A of the Settlement Agreement executed on February 6, 2026 (Exhibit 1).

2. to dismiss this a matter without prejudice and retaining jurisdiction under Code of Civil Procedure § 664.6(a) over Plaintiff GERALDINE RANDALL and Defendants VILLA MARIN HOMEOWNERS ASSOCIATION and KIRK BEALES to enforce the Settlement Agreement until performance in full of its terms.

3. that Defendants' continuing obligations as HOA remain operative during Plaintiff's residency at Villa Marin, including all obligations set forth in paragraphs 5 through 10 of the Settlement Agreement.

4. that a request for dismissal with prejudice may be made only after full performance of the terms of the Settlement Agreement.

5. granting such other and further relief as the Court deems just and proper.

(Randall's Notice of Motion and Motion filed April 8, 2026 and Amended Motion and Motion filed June 2, 2026 (collectively, "Randall Motion").)

Defendants' motion seeks an Order:

1. Dismissing Kirk Beales as a defendant in the First Amended Complaint of Geraldine Randall with prejudice.

2. Requiring plaintiff Geraldine Randall to return to counsel for defendants Kirk Beales and Villa Marin the uncashed settlement check received by her on or about February 16, 2026.

3. Dismissing the First Amended Complaint against Villa Marin without prejudice pursuant to section 664.6(a) of the Code of Civil Procedure until further order of this Court.

4. Dismissing the Cross-Complaint of the Villa Marin Homeowners’ Association without prejudice pursuant to section 664.6(a) of the Code of Civil Procedure until further order of this Court.

5. A judicial declaration that Kirk Beales, Villa Marin and plaintiff and cross defendant Geraldine Randall (“Randall”) have entered into a valid and enforceable settlement that requires Randall to dismiss, with prejudice, Beales and Villa Marin from the First Amended Complaint of Randall.

(Defendants’ Notice of Motion and Motion filed May 22, 2026 (“Defendants Motion”).)

C. Defendants’ Objections

Defendants object to certain language in Randall’s declaration and her memorandum in support of her motion. The Court need not rule on these objections as the language subject to these objections does not impact the Court’s analysis or ruling. Defendants’ other objections, regarding the length of Randall’s voluminous declaration and her memorandum, are overruled. The Court considers all of the papers filed by the parties in ruling on these motions. Randall’s amended notice provided the hearing date once it was received, as is common practice, and added language about the Court’s tentative ruling procedure. No substantive changes were made with respect to the relief sought by Randall. Defendants do not contend they were prejudiced by this amended notice or were unaware of the hearing date.

Defendants also object to Randall’s declaration filed in connection with her opposition to Defendants’ motion. The Court does not rule on these objections for the reasons noted above.

D. Randall’s Objections

Randall objects to new evidence and argument presented by Defendants in connection with their Reply. The Court sustains this objection and does not consider this new evidence. (See *Varjabedian v. City of Madera* (1977) 20 Cal.3d 285 n. 11; *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1212.) The new evidence is not evidence that responds to Randall’s Opposition or fills in gaps, but rather is evidence that could have been presented earlier in connection with Defendants’ moving papers but was not. Defendants provide no explanation as to why they did not offer this evidence in connection with their motion. The Court notes that this evidence would not impact its ruling in any event.

Any earlier settlement conference or discussions involving the parties is not relevant. The Court is focused here on the settlement conference before Judge Sweet on February 6, 2026, and the resulting Agreement that was executed by the parties on the same day.

E. Requests for Judicial Notice

Defendants’ request for judicial notice of the First Amended Complaint (Exhibit 1), the Cross-Complaint (Exhibit 2), and legislative history materials (Exhibits 3-9), is granted. Randall’s request for judicial notice of the Register of Actions (Exhibit A) and her Mandatory Settlement Conference Statement filed on December 23, 2025 (Exhibit B) is also granted. (Evid. Code §§ 452, 453.) While the Court takes judicial notice of these documents, it does not take judicial notice of the truth of any matters stated therein. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

F. The Agreement

The Agreement includes the following language:

> **2. CONSIDERATION TO RANDALL**
>
> **A**. **Payment to Randall**. As consideration for the terms and conditions of the Settlement, the insurer for Villa Marin will pay to Randall the sum of $150,000.00 upon the later of (i) fifteen business days after the Effective Date of this Agreement or (ii) the date counsel for Villa Marin and Beales receive a W-9, completed and signed by Randall.
>
> **B. DISMISSAL OF CROSS-COMPLAINT**
>
> Within ten days after Randall files with the Court her dismissal, with prejudice, of the First Amended Complaint against Villa Marin and Beales with Notice of Errata (the "Dismissal"), Villa Marin will file its dismissal, *with prejudice*, of the Cross-complaint against Randall (the "Cross complaint Dismissal") . . .
>
> **3. CONSIDERATION TO VILLA MARIN AND BEALES**
>
> **Dismissal of the Action.** The Parties represent, warrant and agree that within ten days after receiving the $150,000.00 payment identified in paragraph 2A above, Randall will file with the Court a dismissal of the Action, *with prejudice* . . .
>
> **10. ENFORCEMENT OF THIS AGREEMENT**
>
> **A. Time to Bring Action and Venue.** . . . In any action brought to enforce this Agreement, the Superior Court for the County of Marin shall retain jurisdiction under section 664.6 to resolve disputes and has the power to award sanctions of $500.00 against each of the Parties for breach of the Agreement . . . .
>
> (Emphasis the court.)

The Agreement also includes mutual releases in paragraph 4. In paragraph 5B, the HOA agreed it would pay for the full cost of repairing or replacing the deck at the Little Villa consistent with certain plans and specifications. In paragraph 6A, the HOA agreed it has an ongoing responsibility to maintain the deck. In paragraph 7, the HOA agreed it would not use Jose Zamora or Zamora Eco Landscapes, Inc. to perform work on the deck. Paragraph 8 provides that work on the deck will consist of structural repairs at the discretion of the HOA subject to the terms of the Agreement, and that the HOA will obtain required permits and use a licensed, insured contractor. Paragraph 9, titled "Other Material Terms", provides that the parties agree to comply with all laws regarding the recording of conversations, Randall's maintenance and repair requests will be satisfied within a commercially reasonable time, the parties agree to engage in certain dispute resolution procedures, Randall is not subject to any restrictions not imposed on other HOA members and is required to comply with the provisions of the bylaws and CC&Rs, the parties shall pay each other $500 for violations of an obligation under the Agreement that an arbitrator finds was committed, and the parties can seek injunctive relief from the Court.

G. The Court's Authority Under Section 664.6

CCP §664.6 (a) provides that "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. . . . ."

The statute, CCP §664.6 as cited by the HOA has been updated. The HOA also filed two oppositions to Randall's motion, one on June 11th on its own and one on June 12th jointly with Beales. This is improper, because it allows the HOA to double the page limit requirement through two different law firms.

The parties ask the Court to provide a judicial declaration as to how the Agreement should be interpreted before any dismissal has been entered (Randall Motion, ¶¶1,3 and 4; Defendants Motion, ¶6), and ask the Court to dismiss claims (Randall Motion, ¶2; Defendants Motion, ¶¶3 and 4) even though the Agreement provides for dismissals by the parties.

The Court can interpret a settlement agreement in connection with a motion under Section 664.6. (See *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 470 ["[W]hen issues relating to the binding nature or terms of the settlement are in dispute, section 664.6 empowers the trial court to resolve these disputed issues and ultimately determine whether the parties reached a binding mutual accord as to the material terms"] [citation and internal quotations omitted]; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 566 ["Section 664.6's express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement"].)

The parties do not contend that the Agreement is unenforceable due to any ambiguity. Rather, the parties seek to "enforce" the Agreement under their respective interpretations of the Agreement. Randall focuses her motion on enforcement of paragraph 10A of the Agreement, which references the Court's retention of jurisdiction under Section 664.6, arguing that jurisdiction can only be retained under that section if there is a dismissal without prejudice.

Defendants focus their motion on enforcement of paragraph 3 of the Agreement, arguing that the parties expressly agreed Randall's dismissal of her First Amended Complaint would be with prejudice.

H. Inconsistency between Paragraphs 3 and 10

Paragraphs 3 and 10 of the Agreement are inconsistent, creating an ambiguity in the Agreement.

Paragraph 3 of the Agreement provides: "The Parties represent, warrant and agree that within ten days after receiving the $150,000.00 payment identified in paragraph 2A above, Randall will file with the Court a dismissal of the Action, ***with prejudice*** . . ." [emphasis added]. Defendants focus on this paragraph, arguing that Randall is required to dismiss her First Amended Complaint with prejudice because she received the $150,000 settlement check.

However, paragraph 3 is inconsistent with paragraph 10, which allows the court to retain jurisdiction to award sanctions in the amount of $500 against either party for breach of settlement. CCP § 664.6 allows for the retention of jurisdiction only where claims are dismissed ***without prejudice***: "If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. . . . ."

Section 664.6 creates an exception to the rule that once a voluntary dismissal with or without prejudice has been filed, the trial court is without jurisdiction to act further in the action. (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 437; *Mesa RFH Partners, LP v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917; *Gorgi v. Jack in the Box Inc*. (2008) 166 Cal.App.4th 255, 261.) Section 664.6 revises this rule in the limited circumstance of the court's jurisdiction to enforce a settlement. (See *Wackeen*, 97 Cal.App.4th at p. 439.)

Before the recent amendment to Section 664.6, a court could retain jurisdiction to enforce a settlement as long as the parties asked the court to do so prior to the dismissal of the complaint. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.)[1] The amended Section 664.6, effective January 2025, revised the rule as it applies to settlements by identifying specific circumstances under which the court may retain jurisdiction.

The revision uses the term **"without prejudice"** as it pertains to dismissal four times, never once mentioning dismissal with prejudice. The judicial council form referenced in subsection (h) of Section 664.6, CIV-110, provides a box for dismissal without prejudice only with respect to retention of jurisdiction by the court. Under the doctrine of *expressio unius est exclusio alterius*, which means "the expression of certain things in a statute necessarily involves exclusion of other things not expressed", Section 664.6 is most reasonably interpreted to mean that the court does not retain jurisdiction when the action is dismissed with prejudice. (See *Mutual Life Ins. Co. v. City of Los Angeles* (1990) 50 Cal.3d 402, 410 ["'Under the familiar rule of construction, *expressio unius est exclusio alterius*, where exceptions to a general rule are specified by statute, other exceptions are not to be implied or presumed'"] [citation omitted].)

The wording of the statute now clearly identifies a specific type of dismissal, without prejudice, allows the court to retain jurisdiction. That language was not in the previous version of the statute. "'[W]hen . . . the Legislature undertakes to amend a statute which has been the subject of judicial construction . . . it is presumed that the Legislature was fully cognizant of such construction, and when substantial changes are made in the statutory language it is usually inferred that the lawmakers intended to alter

[1] The parties do not cite, and the Court did not locate, any cases that have addressed the revised language in the most recent version of Section 664.6.

the law in those particulars affected by such changes.'" (*People v. Preston* (1996) 43 Cal.App.4th 450, 460 [citation omitted].)

I. Interpretation of the Agreement

Randall requests that the Court adopt the second interpretation.

Defendants ask the Court to adopt neither, and instead propose a third interpretation: Randall's First Amended Complaint must be dismissed with prejudice ***and*** the Court retains jurisdiction to enforce the Agreement under Section 664.6. This proposed interpretation is not supported by the language of the Agreement or the parties' intent.

First, while Defendants argue that the parties agreed in paragraph 3 that Randall's dismissal of the First Amended Complaint would be with prejudice, the parties cannot confer jurisdiction on a court following such a dismissal merely by agreeing to it. "Speaking generally, any acts which exceed the defined power of a court in any instance, whether that power be defined by constitutional provision, express statutory declaration, or rules developed by the courts and followed under the doctrine of *stare decisis,* are in excess of jurisdiction . . . ." (*Abelleria v. District Court of Appeal, Third Dist.* (1941) 17 Cal.2d 280, 291.) "Jurisdiction cannot be conferred by contract." (*Marshall v. Phillips* (1940) 39 Cal.App.2d 404, 406.) Following a voluntary dismissal, the court no longer has jurisdiction and such jurisdiction cannot be conferred by consent. (See *Harris v. Billings* (1993) 16 Cal.App.4th 1396, 1405; *Casa de Valley View Owner's Assn. v. Stevenson* (1985) 167 Cal.App.3d 1182, 1191-1192.)

Second, principles of contract interpretation support Randall's interpretation, not Defendants' interpretation. (See *Yahoo Inc. v. National Union Fire Ins. Co.* (2022) 14 Cal.5th 58, 69 [principles of contract interpretation can be applied to ambiguous contract]; *Evleshin v. Meyer* (2025) 115 Cal.App.5th 1021, 1038-1039 [same].) "If a contract is capable of two constructions courts are bound to give such an interpretation as will make it lawful, operative, definite, reasonable, and capable of being carried into effect. In addition, [a]n interpretation which gives effect is preferred to one which makes void." (*Khavarian Enterprises, Inc. v. Commline, Inc.* (2013) 216 Cal.App.4th 310, 318 [citations and internal quotations omitted]; see *Safeco Ins. Co. of America v. Robert S.* (2001) 26 Cal.4th 758, 765 ["When reasonably practical, contracts are to be interpreted in a manner that makes them reasonable and capable of being carried into effect, and that is consistent with the parties' intent"]; Civ. Code, § 3541 ["An interpretation which gives effect is preferred to one which makes void"].) Here, Defendants' proposed interpretation is inconsistent with Section 664.6 and improperly attempts to confer jurisdiction on the court, by contract, that the court does not already have by statute or other proper means. Randall's interpretation, in contrast, makes the Agreement lawful and capable of being carried into effect.

The clear intent of the Agreement was to settle all parties' claims against each other and to have the Court retain jurisdiction to enforce the Agreement under Section 664.6. (See Agreement, p. 1 ["Settlement Agreement and Release of All Claims"]; p. 2. ["Each of the Parties represents, warrants and agrees that they wish to resolve all past, present and future claims, whether known and/or unknown, in connection with the Action and that this Agreement represents a settlement of all disputed claims . . ."]; ¶10A.) [2]

Defendants' interpretation requiring dismissal with prejudice is inconsistent with this intent as it would not allow the Court to retain jurisdiction over the parties' (or at least Randall's) claims. (See Civ. Code, § 1653 ["Words in a contract which are wholly inconsistent with its nature, or with the main intention of the parties, are to be rejected"]; Civ. Code § 1650 ["Particular clauses of a contract are subordinate to its general intent"].) Under Randall's interpretation, the parties will still get the benefit of a dismissal of the claims against each other as well as a mutual release of claims; the only difference is that the dismissals will be without prejudice as opposed to with prejudice.

Defendants suggest in opposition filed on June 12 (one of two oppositions) that Randall's First Amended Complaint should be dismissed with prejudice but the HOA's Cross-Complaint should be dismissed without prejudice, such that the Court can retain jurisdiction over the Cross-Complaint. (Opp. at pp. 9:26-28, 11:24-27.) This argument belies the clear intent of the parties was to settle the claims in both the First Amended Complaint and the Cross-Complaint and to have the Court retain jurisdiction to enforce the Agreement. Defendants request dismissal without prejudice of both pleadings. (Defendants Motion, ¶¶3, 4.)

For the reasons discussed above, the Court finds the Agreement requires Randall to dismiss her First Amended Complaint, and the HOA to dismiss its Cross-Complaint, *without prejudice*. Once dismissed, the court shall retain jurisdiction to enforce the Agreement under Section 664.6

The Court's ruling is based on interpretation of the language of the Agreement as discussed above and the language of Section 664.6; it does not create new terms. If the parties wish to have the Court retain jurisdiction under Section 664.6 as they specified in paragraph 10A of the Agreement, the retention of jurisdiction must comply and be consistent with Section 664.6, i.e., the dismissals of the parties' pleadings must be without prejudice.

J. Duration of the Court's Jurisdiction

The Court does not rule on the parties' respective requests as to the duration of the Court's retained jurisdiction, or the appropriate timing for a dismissal with prejudice in the future. These issues are based on future events and are not ripe for the Court's determination.

K. Rulings

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[2] The parties are presumed to have been familiar with the language of the most recent version of Section 664.6 when they executed the Agreement. (See *Estate of Taylor* (1970) 6 Cal.App.3d 16, 22; see also *Estate of Eskra* (2022) 78 Cal.App.5th 209, 228 ["'courts will not set aside contractual obligations, particularly where they are embodied in written contracts, merely because one of the parties claims to have been ignorant of or misunderstood the provisions of the contract'"] [citation omitted].)

1. Randall’s motion is granted. The court retains jurisdiction to enforce the Agreement under Section 664.6. (See Randall Motion, ¶1.)

2. Randall’s motion is denied to the extent that it seeks dismissal by the Court as the Agreement provides for dismissal by the parties, and the settlement check was not cashed and has expired. Randall’s motion is granted to the extent it requests the Court retain jurisdiction if the parties dismiss the First Amended Complaint and Cross-Complaint without prejudice. (See Randall Motion, ¶2.)

3. Randall’s motion is denied to the extent that it asks the Court to determine the meaning of “performance in full” under the Agreement or when a dismissal with prejudice may be filed. (See Randall Motion, ¶¶3, 4.)

4. Randall’s request for costs is denied.

5. Randall’s requests for additional relief at the end of her reply brief are also denied.

6. Defendants’ motion is denied to the extent it requests dismissal of Beales as a defendant with prejudice. (See Defendants Motion, ¶1.) The motion is granted as to a dismissal of Beales without prejudice. The Court ordered this dismissal at the hearing on May 5, 2026.

7. Defendants’ motion is granted to the extent it requests an order requiring Randall to return the settlement check. (See Defendants Motion, ¶¶2, 5.) The HOA’s counsel represents that the time to cash the check expired 90 days after it was issued, or in mid-May. (Declaration of Edward Romero, ¶26.) Randall does not dispute this fact.

8. Defendants’ motion is denied to the extent it seeks a dismissal of the First Amended Complaint, and the Cross-Complaint, without prejudice, as the Agreement provides for dismissal by the parties, and the settlement check was not cashed and has expired. (See Defendants Motion, ¶¶3, 4.)

9. Defendants’ motion is denied to the extent it seeks a declaration that the parties entered into a valid and enforceable settlement that requires Randall to dismiss, with prejudice, Beales and the HOA from the First Amended Complaint. (See HOA/Beales Motion, ¶6.)

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002996

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: MARITZA RAMIREZ

vs.

DEFENDANT: BUCHANAN TECHNOLOGIES, INC.

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL

RULING

On June 3, 2026, Plaintiff filed a motion seeking preliminarily approval of a wage and hour class action brought by Plaintiff on behalf of all other similarly situated current and former non-exempt employees and independent contractors of Defendant Buchanan Technologies, Inc. ("Defendant"). The Operative Complaint alleges violations of the California Labor Code and Wage Orders including that Defendant (i) failed to pay all overtime wages owed; (ii) failed to provide meal periods, or premium pay for non-compliant meal periods; (iii) failed to authorize and permit rest periods, or premium pay for non-compliant rest periods; (iv) failed to pay minimum wages; (v) failed to pay final wages on time; (vi) failed to issue compliant wage statements; (vii) failed to reimburse business expenses; and (viii) for violations of California Business & Professions Code Section 17200, et seq., based on the aforementioned California Labor Code violations.

The Class is composed of approximately 448 current and former non-exempt employees and independent contractors, whether hourly paid, commission-based or salaried, who worked for Defendant Buchanan in the State of California at any time from November 28, 2019, through January 14, 2026 (the "Class Period").

Defendant stipulates to settlement as a class action, and does not file an opposition to Plaintiff's request. The parties did not file a joint request for settlement approval.

The terms are:

1. Defendant will pay a maximum of $700,000.00, of which, $411,500 will be distributed on pro rata basis according to the total worked by each putative class member. There are approximately 448 employees who will benefit from the settlement.

2. The settlement period is November 28, 2019, through January 14, 2026.

3. No claims process is required. The putative class members are not required to submit a claim to be issued a settlement payment. The costs for claim administration are estimated at 11,000.

4. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties.

5. The release is limited to: (a) failure to pay all overtime wages owed; (b) failure to provide meal periods, or premium pay for non-compliant meal periods; (c) failure to authorize and permit rest periods, or premium pay for non-compliant rest periods; (d) failure to pay unpaid minimum wages; (e) failure to pay final wages on time; (f) failure to issue accurate, itemized wage statements; (g) failure to timely pay all wages due upon separation of employment; and (h) claims of unfair business practice limited to the wage claims brought in the complaint.

6. Funds available after claims administration are proposed to be directed to the State of California's Unclaimed Property Fund.

7. Cost of settlement administration shall be up to $25,000 of the settlement fund;

8. Enhancement/Service Award to Plaintiff: Defendant will not oppose the application for a service award of up to $7,500 for the Plaintiff, to be paid from the settlement fund;

9. Fees and Costs: Defendant will not oppose Counsel's application for fees of up to one third (35%) of the Gross Settlement Amount (currently estimated to be $245,000). Class counsel supports this payment by stating in the declaration of Ali Sachani that "[t]his percentage is consistent with rates Class Counsel charges in comparable wage-and-hour class actions." This appears to be a contingency fee. Counsel does not provide the court with its lodestar for a comparison relative to the reasonableness of the rate.

The class settlement amount is approved. The terms, however, require clarification before notice of settlement is distributed to the class.

A. Contingency attorneys' fees vs. compensable hours worked (Lodestar).

Counsel shall be prepared to better justify the requested contingency fee of $245,000 by providing the lodestar of contemporaneously recorded hours worked up to the date of settlement. The request also does not indicate if the contingency fee award contains a fee multiplier. A multiplier may be applicable if there was protracted li

Moreover, there is no cost analyses provided to justify the requested costs of $25,000.

B. Fund Residue.

The parties shall meet and confer to determine a more appropriate recipient of residue funds other than the state common fund. The residue fund recipient should be more directly tied to the purpose of the settlement. Here, as described in the unopposed request for approval of the settlement, the settlement vindicates the rights of employees who the motion describe as not being provided with property wages and who were denied rest and meal breaks. The parties are ordered to meet and confer to discuss an award of the residual settlement to a non-profit organization or collegiate educational program with a mission statement more closely aligned, or as near as possibly aligned, to the goal of the settled wage and hour lawsuit.

Class notices must be modified to address how attorneys' fees will be determined and identify a more appropriate *cy pres* recipient.

Appearances are required.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004467

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M.GIL

PLAINTIFF: SARA CHEZKIAN

vs.

DEFENDANT: DANIEL L. DAMATO

NATURE OF PROCEEDINGS: 1) MOTION – SET ASIDE/VACATE
2) MOTION – RELIEVE COUNSEL

RULING

There are two motions on calendar.

I. Motion to be Relieved as Counsel

Counsel for Plaintiff Sara Chezkian, Benjamin Graves, Esq. files a Motion to be Relieved as Counsel. The court has reviewed the declaration in support of the motion filed by Mr. Graves. The motion is unopposed and it is GRANTED.

II. Motion to Set Aside and Vacate Judgment

Plaintiff Chezkian prevailed after a trial on the merits on February 24, 2026, with this Court issued a Judgment After Trial for $267,400.00, and awarded pretrial interest of $72,732.80 for a final judgment amount of $340,132.80. Plaintiff filed a post-trial Motion for Recovery of Attorney's Fees and costs on March 2, 2026. The court granted the request, awarding plaintiff $116,206.03 as recoverable litigation fees and costs.

The court minutes indicate the trial began at 10 am in department L on February 24, 2026, and concluded at 3 pm. A total of 3 witnesses were called. At the conclusion of trial, the plaintiff presented a demand for damages and the court awarded $267,000.

Plaintiff argues in her motion to set aside the judgment that Mr. Graves attempted to coerce Plaintiff into accepting a settlement of approximately $140,000 on the eve of trial. On this record, the issue of what occurred on the eve of trial is moot because the Plaintiff was awarded $267,000 after a full presentation of evidence by both parties.

The court awarded damages after a presentation of evidence, and awarded the Plaintiff $267,000. After the trial, the court also awarded pre-trial interest of $72,732.80, and trial cost recovery of $116,206.03. The total awarded to Plaintiff is $455,938.

Plaintiff's request to set aside the judgment is DENIED.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005986

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: MIRIAM GOLDSTEIN

vs.

DEFENDANT: JON GOLDSTEIN

NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

RULING

On April 30, 2026, Plaintiff Miriam Goldstein filed a Notice of Application to appear *Pro Hac Vice*. The application explains that applicant Evan I. Cohen, Esq. is an attorney in good standing in the State of Connecticut and other jurisdictions, is not a member of the State Bar of California, and is not regularly engaged in business or the practice of law in California. He has been retained to represent Plaintiff Miriam Goldstein in this action.

Defendant has not filed a response, nor was an opposition to the application been filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's application is therefore GRANTED in it's entirely. Plaintiff to prepare the order.

Welcome.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If

the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005601

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: CRAIG CHADWICK vs. DEFENDANT: JAGUAR LAND ROVER NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY, ET AL	

NATURE OF PROCEEDINGS: MOTION –COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Craig Chadwick filed a Motion to Compel Further Responses to Request for Documents, Set one, on January 13, 2026. Pursuant to Marin County Rule, Civil 2.13B, on February 6, 2026, the parties were ordered to participate in the court's Discovery Facilitator program by selecting one of the three mediators provided. Defendant Jaguar Land Rover North America ("Defendant") filed an opposition brief on April 6, 2026. Plaintiff filed a reply brief on April 14. No information was provided by either party about their participation in the mandatory Discovery Facilitator program.

The matter was called as regularly scheduled in this department on April 17, 2026, and continued based on a stipulation of the parties in an effort to continue the meet and cover process. The court ordered the parties to fill supplemental declaration to provide the court with an update of those efforts before the hearing set for June 26, 2026 at 130 pm

The court has reviewed the supplemental declaration filed by the Plaintiff dated June 17, 2026. It contains samples of transcript testimony that need more explanation as to how they fit in Plaintiff's motion. Given that Plaintiff's supplemental declaration is not helpful, Defendant's evidentiary objections to its filing are OVERRULED, until the court better understands the purpose of the transcript testimony.

Motion to Compel Production of Documents 1-3

Plaintiff's Request for Production, Set One, seeks documents which they allege are relevant to the asserted claims under the Song-Beverly Consumer Warranty Act ("SBA"), specifically as to Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the Subject Vehicle (RFPs Nos. 1, 3). On September 15, 2025, Plaintiff propounded Request for Production of Documents, Set One, on Defendant seeking documents relating to Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the Subject Vehicle (RFPs Nos. 1, 3). Plaintiff also seeks recall notices and dealer communications regarding the same vehicle. (RFP No 2)

Plaintiff argues that Defendant has not produced the entirety of the emails, memoranda, data or investigations that could help Plaintiff establish Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model. This evidence may establish Defendant's knowledge and inability to repair the defects, as well as its possible failure to adequately compensate Plaintiff with respect to the his/her vehicle.

1. RFP 1 seeks internal investigation and analysis documents concerning complaints similar to those raised by Plaintiff regarding vehicles of the same year, make, and model.

Defendant explains in its separate statement that these are documents that readily available to Defendant, pursuant to 49 CFR § 579.2 and 49 CFR § 579.22, and that Defendant is required to produce these documents government regulators on a quarterly basis. The discovery sought is relevant to the case in that it pertains to information that was readily available to Defendant.

Defendant responds that that it is unable to comply with this request and that pursuant to a diligent search and reasonable inquiry, no responsive documents have ever existed or have never been in possession, custody, or control of Defendant. JLRNA further provided the name and address of the organization known or believed to be in possession, custody of the documents.

Plaintiff's motion to compel RFP 1 is GRANTED. Defendant is to identify the documents Plaintiff seeks, including Safety Recalls, Special Service Messages and/or Technical Safety Bulletins that address the defects and nonconformities that were present in Plaintiff Vehicle. Defendant has not specifically identified why a response by burdensome. Defendant shall also the supporting documents which went into the TSBs/SSMs/Campaigns identified by the Plaintiff.

2. RFP 2 seeks documents and information concerning Plaintiff's 2020 Land Rover Range Rover Evoque, which is the subject of this lawsuit.

These documents are relevant to Plaintiff's claims. See, *Krotin v. Porsche Cars N. Am., Inc.*, 38 Cal.App.4th 294, 303 (1995) (an automobile manufacturer's "dealers' service records" are probative of whether a particular vehicle is defective). See, Jensen v. BMW of N. Am., LLC, 328 F.R.D. 557, 562 (S.D. Cal. 2019) ("records concerning the specific vehicle at issue" are relevant to proving liability under the SBA).

Defendant responds that all responsive documents to this request were produced on August 15, 2025, and there is nothing more to produce.

Plaintiff's Motion to Compel RFA 2 is DENIED. However, the Defendant is to supplement any additional corporate documents or information regarding the vehicle that has been generated since the documents were produced.

3. RFP 3 seeks customer complaints relating to defects alleged by plaintiff in vehicles of the same year, make, and model of car at issue.

Defendant’s separate statement explains that the prevailing authority makes clear that the scope of discovery *includes* documents that relate to similar defects experienced by other consumers. *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 143-144, 153 (evidence of special service bulletins issued before Plaintiff bought his truck and evidence of similar transmission problems in other trucks were relevant and admissible); *Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 973, 978-979, 986* (documents of warranty complaints, service histories, and employee records concerning the subject defect in all affected vehicles and the company’s responses and instructions regarding cure were discoverable and relevant to issue of defendant’s good faith treatment of the problem); see also, *Norton v. Super. Ct.* (1994) 24 Cal. App. 4th 1750, 1760-1761 (an admissible document is necessarily discoverable); Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117-1118 (if evidence is admissible based on caselaw, then it is discoverable)

Defendant responds that a Plaintiff need not look beyond her own service history and personal experience with his vehicle to know if the repairs have been successful. As the Court stated in *Oregel v. American Isuzu Motors Inc. (2001) 90 Cal.App.4th 1094*, 1102 n.8, the plaintiff need not present expert testimony concerning the cause of an alleged defect to prevail.

Plaintiff’s motion to compel RFA 3 is GRANTED, for the same reasons stated in RFA 1.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party’s absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006922

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: UPHOLD HQ INC.

vs.

DEFENDANT: GRACIELA RAMONA HERNANDEZ ROMERO, ET AL

NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

RULING

On April 28, 2026, Plaintiff UpHold Hq, Inc. filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice*. The application explains that applicant Jack Ryan, Esq. seeks admission *pro hac vice* and to be allowed to act as co-counsel along with local counsel Mark B. Chassman, Esq. of Meister Seelig & Schuster LLP, on behalf of Plaintiff Uphold HQ, Inc. for purposes of this action only.

Defendants have not filed a response, nor was an opposition to the application filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's application is therefore GRANTED in it's entirely.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006929

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: GOLNESA GHARACHEDAGHI

vs.

DEFENDANT: ROGERIO CALLEGARI

NATURE OF PROCEEDINGS: 1) DEMURRER
2) ORDER – SHOW CAUSE - FAILURE TO APPEAR

RULING

The demurrer of defendant Rogerio Callegari to the first amended complaint of plaintiff Golnesa Gharachedaghi is overruled as to the first through third and eighth causes of action, and sustained without leave to amend as to the fourth through seventh causes of action.

Background

Plaintiff alleges eight causes of action arising from Defendant's alleged misconduct in a business partnership. She alleges that he misappropriated $330,000 she contributed to the partnership and did not fulfill his obligations under their partnership agreement.

Plaintiff filed her original complaint on July 17, 2025. Her first amended complaint filed on February 17, 2026 includes the following causes of action: (1) breach of contract; (2) breach of implied covenant of good faith and fair dealing; (3) breach of fiduciary duty; (4) fraud; (5) constructive fraud; (6) conversion; (7) violation of Penal Code section 496; and (8) unfair business practices

A. Procedural Issues

Defendant's demurrer fails to comply with California Rule of Court 3.1320(a).

> "[e]ach ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses."

Defendant's demurrer includes only one paragraph which challenges all of the causes of action on statute of limitations grounds and then challenges four of the individual causes of action.

Additionally, Defendant filed his demurrer one day after his response was due. The court has discretion to consider an untimely demurrer. (*Jackson* v. *Doe* (2011) 192 Cal.App.4^{th} 742, 749.)

Plaintiff has not been prejudiced by either of these matters and therefore the court will not overrule the demurrer based upon them. Additionally, while Plaintiff points to a case for the proposition that the court *may* overrule a demurrer to the entire complaint if any cause of action is stated (see *Warren* v. *Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 36), the court will not exercise its discretion in that manner in ruling on the demurrer.

B. Legal Standard

"'[A] general demurrer will lie where the complaint "has included allegations that *clearly* disclose some defense or bar to recovery."' A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. 'To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.' The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law." (*Simple Avo Paradise Ranch, LLC* v. *Southern California Edison Co.* (2024) 102 Cal.App.5^{th} 281, 288-289, citations omitted.)

C. Statute of Limitations

Defendant demurs to all causes of action on the ground that they are barred by the statute of limitations. He argues that the statute of limitations began to run in September 2020 when Plaintiff requested that Defendant provide tax and financial documents. Plaintiff's allegations show that she is relying upon the delayed discovery rule to start the statute of limitations running in December 2021. In *WA Southwest 2, LLC* v. *First American Title Ins. Co.* (2015) 240 Cal.App.4^{th} 148, 156-157, the court explained:

> An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action." A plaintiff relying on the discovery rule must plead "'(1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence'" Plaintiffs have an obligation to plead facts demonstrating diligence.
>
> "Where a fiduciary obligation is present, the courts have recognized a postponement of the accrual of the cause of action until the beneficiary has knowledge or notice of the act constituting a breach of fidelity. The existence of a trust relationship limits the duty of inquiry. 'Thus, when a potential plaintiff is in a fiduciary relationship with another individual, that plaintiff's burden of discovery is reduced and he is entitled to rely on the statements and advice provided by the fiduciary.'" But even [if the defendant] had a

> fiduciary duty to plaintiffs, this does not mean that plaintiffs had no duty of inquiry if they were put on notice of a breach of such duty.
>
> (Citations omitted.)

In his reply, Defendant argues that Plaintiff's demand in September 2020 demonstrates that she suspected wrongdoing and sought verification. Defendant is raising a factual issue which cannot be resolved on demurrer. Plaintiff alleges that the partnership was supposed to provide records at the end of each fiscal year. The fact that she asked for records does not establish that she suspected that there had been wrongdoing. And because of the fiduciary relationship between her and Defendant, she was entitled to rely upon his statements that the accountant was preparing the documents and that he would send them to her when they were complete.

1. Causes of Action 1, 2, 3 and 8

Plaintiff's causes of action for (cause of action 1) breach of contract, (2) breach of implied covenant of good faith and fair dealing, (3) breach of fiduciary duty and (8) unfair business practices withstand demurrer. A four year statute of limitations applies to each of those causes of action. (Code Civ. Proc., § 337, subd. (a) [breach of contract and breach of implied covenant of good faith and fair dealing]; § 343 and see *Thomson* v. *Canyon* (2011) 198 Cal.App.4th 594, 606 [breach of fiduciary duty]; Bus. & Prof. Code § 17208 [unfair business practices].) The court cannot determine from the face of the pleading that the statute of limitations began to run prior to December 2021. As to these causes of action the Demurrer is OVERRULED.

Plaintiff alleges that Defendant beached their written contract by the following acts:

> 30. …by failing contribute [sic] his promised capital contribution and, instead, using Plaintiff's funds to cover his share of the partnership/LLC obligations, such as the $50,000 HEMP fee and the rental of the hoop houses.
>
> 31. …by depositing Plaintiff's funds into his own bank account instead of depositing them into a separate capital account designated as Plaintiff's account.
>
> 32. …by refusing to allow Plaintiff to inspect the partnership/LLC financial records.

Plaintiff alleges that Defendant breached the implied covenant "by failing to open a separate account for Plaintiff's capital contribution to the partnership/LLC, as promised, by using Plaintiff's funds to pay for business expenses that Defendants were obligated to pay out of his initial capital contribution, by depositing Plaintiff's capital contribution into his own account, by failing to provide the promised tax/financial records and filings, and by refusing Plaintiff's request to audit the available books in order to learn what happened to her investment." (¶37.)

Defendant demurs on the ground that these cause of action are barred by the four year statute of limitations set forth in Code of Civil Procedure section 337, subdivision (a), which applies to "[a]n action upon any contract, obligation or liability founded upon an instrument in writing." Defendant argues in his moving brief:

> …[T]he alleged request for tax and financial documents was made in September 2020, and Plaintiff never received the requested tax and financial documents. Therefore, the breach occurred in September 2020…

The argument assumes Defendant had an obligation to turn the documents over immediately upon Plaintiff's request. He points to nothing in Plaintiff's allegations to show that this was the case.

Plaintiff alleges that the partnership was supposed to provide records at the end of each fiscal year. That she asked for records does not establish that she suspected that there had been wrongdoing. And because of the fiduciary relationship between her and Defendant, she was entitled to rely upon his statements that the accountant was preparing the documents and would send them to her when they were complete.

Defendant has not shown that the four year statute of limitations began to run prior to December 2021, and therefore the action filed on July 17, 2025 is timely.

The Demurrer to the first and second causes of action is OVERRULED

2. Cause of Action 3

Plaintiff alleges that Defendant breach the fiduciary duty he owed to Plaintiff "by, among other things, depositing plaintiff's capital contribution into his personal account and co-mingling Plaintiff's funds with his own, failing to contribute his own funds to the activities of the business partnerships/joint venture, by spending Plaintiff's funds in lieu of his own funds without Plaintiff's knowledge or permission, by failing to provide the promised tax/financial records, and by refusing plaintiff's request for an accounting of her investment funds."

Defendant again argues that the cause of action is barred by the statute of limitations, and again cites section 337. However, CCP § 343 applies. "The Code of Civil Procedure does not specify a statute of limitations for breach of fiduciary duty. The cause of action is therefore governed by the residual four-year statute of limitations in Code of Civil Procedure section 343 governing 'an action for relief not hereinbefore provided for' in the code." (*Thomson* v. *Canyon* (2011) 198 Cal.App.4th 594, 606, citation and brackets omitted.[1])

Defendant has not shown that the four year statute of limitations began to run prior to December 2021. The Demurrer as to cause of action 3 is OVERRULED.

3. Causes of Action 4-6

A three year statute of limitations applies to Plaintiff's causes of action 4-7. (§ 338, subd. (d) [fraud and constructive fraud]; § 338, subd. (c)(1) [conversion and violation of Penal Code section 496].) Plaintiff filed her action more than three years after December 2021.

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[1] An exception exists if the gravamen of the claim is actual or constructive fraud, in which case section 338, subdivision (d) applies. (*Id.* at 606-607.) The gravamen of Plaintiff's cause of action is not actual or constructive fraud.

In the fraud cause of action, Plaintiff alleges that Defendant repeatedly made false statements and promises in an effort to induce Plaintiff to enter into a partnership with him, contribute substantial sums of money, and entrust him with the control over partnership affairs. (¶¶45-46.) He continued making false statements and promises to induce Plaintiff to continue in the partnership and sign the partnership agreement. (¶47.) Plaintiff relied upon the statements and promises and was damaged as a result. (¶¶ 48, 50.)

In the fifth cause of action for constructive fraud, Plaintiff alleges that between June and September 2019, Defendant knew or should have known of the delays in preparing his property for cultivation yet misled Plaintiff by fabricating evidence to show that he was actively preparing the land. (¶54.)
Defendant argues that the causes of action are barred by the statute of limitations and that they are not pleaded with sufficient specificity. Fraud actions are governed by the three year statute of limitations period set forth in section 338, and "[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (§ 338, subd. (d).) Plaintiff herself acknowledges that the statute of limitations began running in December 2021. She did not commence this action until July 2025, more than three years later. She does not address these causes of action at all in the section of her opposing brief where she argues that she has adequately pled each cause of action.

The statute of limitations for conversion is three years. (See § 338, subd. (c)(1), and *AmerUS Life Ins. Co.* v. *Bank of America, N.A.* (2006) 143 Cal.App.4th 631, 639.) Plaintiff acknowledges that her causes of action accrued in December 2021, and therefore this cause of action is barred. Although Plaintiff addresses this cause of action in her opposing brief, she only addresses the lack of standing argument.

As to causes of action 4-6, the Demurrer is SUSTAINED, without leave to amend.

4. Cause of Action 7

Plaintiff alleges that Defendant stole her money in violation of Penal Code section 496, subdivision (a). Penal Code section 496 is obviously a criminal statute, but subdivision (c) allows a person who has been injured by a violation of subdivision (a) or (b) to bring "an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees." Defendant raises the same arguments as he did in connection with the conversion cause of action.

As for the statute of limitations, Defendant argues that it is "four years pursuant to CCP Section 338(c)(1)." Section 338, subdivision (c)(1) is the three years statute of limitations application to "[a]n action for taking, detaining, or injuring goods or chattels…" Plaintiff cites *Bell* v. *Feibush* (2013) 212 Cal.App.4th 1041 in support of his argument, however there is mention of section 338 or the statute of limitations in that case. Section 496, subdivision (a) addresses "property that has been stolen or that has been obtained in any manner constituting theft or extortion…" This certainly falls under the category of "taking[or] detaining…goods or chattels."

As the court in *Bell* explained, "Penal Code section 484 describes acts constituting theft." (*Id.* at 1048.) Section 338, subdivision (c)(2) provides that "[t]he cause of action in the case of theft, as described in Section 484 of the Penal code, of an article of historical, interpretive, scientific, or artistic significance is not deemed to have accrued until the discovery of the whereabouts of the article by the aggrieved party, the aggrieved party's agent, or the law enforcement agency that originally investigated the theft." Section 338, subdivision (c) address particular causes of action in theft under section 484 to which a six year statute of limitations applies. These provisions indicate that section 338, subdivision (c) applies to "theft" under the Penal Code. In her opposition, without citing any authority, Plaintiff states that "the SOL for Penal Code § 496 is four (4) years, a fact that Defendant concedes." However, no support is provided for the argument

The demurrer is SUSTAINED, without leave to amend.

5. Cause of Action 8

Plaintiff alleges that Defendant's actions and omissions constitute unfair, unlawful and fraudulent business practices in violation of section 17200. (¶66.)

Defendant argues that the cause of action is barred by the statute of limitations, which is four years pursuant to section 17208. "…[T]he UCL is governed by common law accrual rules to the same extent as any other statute," including application of the discovery rule. (*Aryeh* v. *Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1196; see also *People* v. *Experian Data Corp.* (2024) 106 CA5th 799, 809-810.) As already discussed, Defendant has not shown that the four year statute of limitations began to run prior to December 2021.

The demurrer to cause of action 8 is OVERRULED, without leave to amend.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008059

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: MARIN HOUSING AUTHORITY

vs.

DEFENDANT: MOTIVIT LLC

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant MotivIT LLC's ("Defendant") demurrer to Plaintiff The Housing Authority of the County of Marin's ("MHA") First Amended Complaint ("FAC") is OVERRULED.

BACKGROUND

This lawsuit arises out of a cybersecurity incident affecting MHA. MHA hired Defendant to provide IT support and cybersecurity services. (FAC, ¶ 8, Ex. C.) MHA alleges that the contract defining the parties' business relationship consists of the proposal Defendant submitted in response to MHA's Request for Proposals ("RFP"), certain "documentation" "related" to that response, a service contract, and addenda to the service contract. (*Id.* at ¶¶ 9, 11; see also Ex. A [MHA's RFP], C [service contract]; B [addendum to service contract].) The service contract contains an indemnity clause. (*Id.* at ¶ 12; Ex. C, § 11.17.)

MHA alleges that hackers accessed MHA's IT system, resulting in MHA employees being tricked with MHA losing nearly $1 million to the hackers. (FAC, ¶¶ 1-2, 13-14, 28-33.) The complaint states that MHA, as a matter of compliance with privacy laws, reported the data breach to consumers and regulators, which was costly. (*Id.* at ¶ 34.) The breach has also resulted in MHA being sued by consumers. (*Id.* at ¶¶ 35-37.) MHA alleges that it formally demanded that Defendant indemnify MHA against these losses. Defendant claims no liability for the breach. (*Id.* at ¶¶ 38, 41-42.)

MHA asserts causes of action for breach of contract (for breach of the indemnity provision and for breach of the contractual obligation to protect MHA's systems against cyberattacks); equitable indemnity, styled "breach of common law indemnity"; and negligence.

In early March, the Court ruled on Defendant's demurrer to the entirety of MHA's original complaint. It sustained that demurrer with leave to amend as to the **equitable indemnity claim** and the **negligence claim**. (See March 6, 2026 Order ("Order"), p. 1.) MHA amended the complaint, and the Court now considers Defendant's demurrer to that amended pleading.[1]

Defendant now demurs to the equitable indemnity and the negligence claims.

I. LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568.) This treatment applies only to facts. A court does not assume the truth of contentions, deductions, or conclusions of fact or law. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 147.) The complaint must be liberally construed and all reasonable inferences must be drawn in favor of its allegations. (*Teva Pharmaceuticals USA, Inc. v. Superior Court* (2013) 217 Cal.App.4th 96, 102; see also Code Civ. Proc., § 452.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore*, *supra*, 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.)

II. DISCUSSION[2]

A. Second Cause of Action: "Breach of Common Law Indemnity"

Historically, California recognized three types of indemnity: express indemnity, or indemnity expressly provided for by contract; implied contractual indemnity, meaning indemnity implied based on a contract not specifically mentioning indemnity; and equitable indemnity (often referred to in the past as "implied indemnity"), or indemnity arising from the equities of the circumstances, without regard to any contractual relationship between the parties. (*Prince v.*

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[1] Defendant filed two versions of its moving brief and declaration, one version of each on April 17 and a second on April 29. The Court does not know whether the versions are substantively different, but it has considered only the April 29 versions.

[2] Citing Evidence Code §451, MHA requests judicial notice of an unpublished trial court decision from Massachusetts. It relies on *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, arguing that a court "may in its discretion take judicial notice of any court record in the United States." (91 Cal.App.4th 875, 882.) The court believes MHA is mistaken and refers to Evidence Code §459. Whatever the case, the Court does not rely on that case in this ruling.

Pacific Gas & Electric. Co. (2009) 45 Cal.4th 1151, 1157 & fn. 2, 1163; see also *Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628.) Current law recognizes "only two basic types of indemnity[,]" express and equitable, with implied contractual indemnity now seen as a form of equitable indemnity. (*Prince*, *supra*, 45 Cal.4th 1151, 1157.)

"Where . . . the parties have expressly contracted with respect to the duty to indemnify, the extent of that duty must be determined from the contract and not by reliance on the independent doctrine of equitable indemnity." (*Rossmoor Sanitation*, *supra*, 13 Cal.3d 622, 628; accord *Regional Steel Corp. v. Superior Court* (1994) 25 Cal.App.4th 525, 529; *Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.) "This rule seeks to 'permit [] people to voluntarily order their affairs in a manner agreeable to them' and recognizes that 'equity rarely interferes with a contract knowledgeably executed.'" (*Maryland Casualty Co.*, *supra*, 35 Cal.App.4th 856, 873 [quoting *C.L. Peck Contractors v. Superior Court* (1984) 159 Cal.App.3d 828, 834].) For example, in *Regional Steel Corp.*, *supra*, 25 Cal.App.4th 525, a contract between a general contractor and a subcontractor expressly provided that the subcontractor was to indemnify the general contractor against losses or damage caused by the subcontractor. (25 Cal.App.4th 525, 529.) The Fourth District held that this limited the general contractor to theories of indemnity arising out of that contractual language, so the subcontractor was entitled to summary judgment on an equitable indemnity claim. (*Ibid.*)

MHA pleads that there is an express contractual indemnity provision in the contract between MHA and Defendant that requires Defendant to indemnify MHA against the losses described in the pleading. (FAC, ¶ 48.) Generally speaking, a plaintiff "may plead in the alternative and may make inconsistent allegations." (*Adams v. Paul* (1995) 11 Cal.4th 583, 593; *Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.) Thus, a plaintiff could plead the existence of an enforceable express contractual indemnity provision *and* could plead, in support of an equitable indemnity claim brought in the alternative, the nonexistence of any enforceable contractual indemnity provision. However, where a party pleads both express contractual indemnity and equitable indemnity, and the latter claim "does not allege that [the] contract is unenforceable or that the parties did not have a contract[,]" the equitable indemnity claim is not properly pleaded in the alternative and is subject to demurrer. (See *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389-1390 [discussing this principle in the context of simultaneous claims for breach of contract and quasi-contract unjust enrichment].)

The Court sustained Defendant's demurrer to the original complaint's equitable indemnity claim on this basis, finding that the equitable indemnity claim did not " 'deny the existence or enforceability of' " the contract between MHA and Defendant or its indemnity provision. (Order, p. 5 [quoting *Klein*, *supra*, 202 Cal.App.4th 1342, 1389-1390].) The Court did not "rule[] that [MHA] cannot maintain an equitable indemnity claim while simultaneously alleging that the parties' contract – and its indemnity provision – is valid and enforceable." (Memorandum, p. 6.) It stated that MHA *can* do that; however in order to do so, MHA must expressly plead inconsistent allegations regarding the existence or enforceability of the contractual indemnity provision. MHA must allege, in connection with the equitable indemnity claim, that the contractual indemnity provision does not exist or is unenforceable. (Order, p. 5.)

The FAC explains that Defendant has taken the position that an addendum to the parties' service contract wrote the indemnification clause out of the agreement. (FAC, ¶ 63; see also Order, p. 3

[describing Defendant's argument regarding the effect of the addendum on the indemnification clause].) The FAC states that "[i]f [Defendant's] position [regarding the effect of the addendum] is accepted, then a contractual indemnification claim would not be available to [MHA] or would be curtailed by the terms of the Addendum." (*Id.* at ¶ 63.) Here the FAC pleads that MHA offers its equitable indemnity claim as an alternative basis for indemnification if Defendant establishes that the contractual indemnity provision either does not exist or is unenforceable. (*Ibid.*)

MHA has cured the defect the Court identified in its prior order and the demurrer to the second cause of action is OVERRULED.

B. Third Cause of Action: Negligence

The economic loss rule provides that "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage[.]" (*Moore v. Centrelake Medical Group, Inc.* (2022) 83 Cal.App.5th 515, 534-535 [quoting *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922].) Defendant argues, as it did in connection with the last demurrer, that MHA's negligence claim is barred by the economic loss rule.

MHA has alleged that Defendant, which maintained a backup of one of MHA's servers, irretrievably deleted certain files that should have been included as part of that backup. (FAC, ¶¶ 43-45, 90.) MHA alleges that this deletion rendered the server nonoperational. (*Id.* at ¶ 91.) This is an allegation of property damage, and the Court is required to accept it as true for purposes of this demurrer. This is sufficient to insulate the negligence claim against the economic loss rule.

The demurrer to the third cause of action is likewise OVERRULED.

Counsel for Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008626

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: TU NGUYEN

vs.

DEFENDANT: PRICE CARS SR, LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Price Cars SR, LLC D/B/A Toyota Marin's ("Defendant") Motion to Compel Arbitration and to Stay Proceedings is GRANTED.

I. REQUESTS FOR JUDICIAL NOTICE

Plaintiff Tu Nguyen's ("Plaintiff") Request for Judicial Notice No. 1 is GRANTED. (Evid. Code, § 452, subds. (c) and (h).)

Defendant's Requests for Judicial Notice Nos. 1 and 2 are GRANTED. (Evid. Code, § 452, subds. (c) and (h).)

II. OBJECTIONS TO EVIDENCE

Plaintiff's Objections to Evidence Nos. 1-17[1] are OVERRULED.

III. Motion to Compel Arbitration

A. LEGAL STANDARD

Under the Federal Arbitration Act (9 U.S.C. § 1 et seq. ("FAA") " '[a] written provision in ... a contract evidencing a transaction involving [interstate] commerce to settle by arbitration the controversy thereafter arising out of such contract or transaction, ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.)" (*Broughton v. Cigna Healthplans of California* (1999) 21 Cal.4th

[1] The Court notes that the Objections restart their numbering multiple times throughout the document. The Court has referred to them by consecutive numbers for ease of reference. Moving forward the Court requests all objections contained in one document be consecutively numbered.

1066, 1073-1074, superseded by statute on other grounds as stated in *Ferguson v. Corinthian Colleges, Inc.* (9th Cir. 2013) 733 F.3d 928, 937.) The FAA was intended to reverse centuries of judicial hostility to arbitration agreements by putting arbitration agreements upon the same footing as other contracts. (*Shearson/American Exp., Inc. v. McMahon* (1987) 482 U.S. 220, 225-226.)

However, arbitration – whether under the California Arbitration Act ("CAA") or FAA – "is a matter of consent, not coercion … a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development* (US), LLC (2012) 55 Cal.4th 223, 236 [internal quotations and citations omitted].) The existence of a valid agreement to arbitrate is a "question of arbitrability" to be decided by the court unless the parties expressly agree otherwise. (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 83 [questions of arbitrability include whether parties are bound by an arbitration clause or whether binding clause applies to particular case or controversy].)

The party seeking to arbitrate must prove the existence of the agreement. (*Pinnacle, supra,* 55 Cal.4th at 236.) If it does so, the burden shifts to the party opposing arbitration to "demonstrate that an arbitration provision cannot be interpreted to require arbitration of the dispute" or that the agreement is otherwise unenforceable. (*Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686-87.)

Both the FAA and CAA employ the same principles of contract interpretation. Thus, regardless of which act governs the interpretation of the Agreement, the result is the same." (*Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 157.) Where the interpretation of an arbitration provision does not turn upon the credibility of extrinsic evidence, interpretation is solely a judicial function and the court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made. (*Gravillis v. Coldwell Banker Residential Brokerage Co.* (2006) 143 Cal.App.4th 761, 771.)

B. DISCUSSION

Defendant brings this Motion pursuant to the FAA (9 U.S.C. § 4) and California Code of Civil Procedure section 1281.2 (to the extent that the FAA does not apply) for an order compelling Plaintiff to arbitrate his claims against Defendant. Pursuant to California Code of Civil Procedure section 1281.4, Defendant further moves for a stay of this action pending the outcome of arbitration.

Defendant asserts that all claims raised in the Complaint are subject to a valid and enforceable arbitration agreement between Plaintiff and Defendant, requiring Plaintiff to resolve his claims through arbitration and not in civil court.

1. Existence of Agreement to Arbitrate

Defendant, an automobile dealership in Marin, California, hired Plaintiff in early 2018. (Compl., ¶ 6.) Defendant asserts that during the course of his employment, Plaintiff explicitly agreed twice to the exact same arbitration agreement: the first on August 9, 2024 and the second and most recently, on March 11, 2025 (hereafter "Arbitration Agreement"). (Sullivan Decl., ¶¶ 10-11, Exhs. 1-2.)

The Arbitration Agreement states in pertinent part:

> I agree to utilize binding, individual arbitration to resolve all disputes that might arise out of or be related in any way to my application for employment and/or employment by the Company. Such disputes include, but are not limited to, claims I might bring against the Company for wrongful termination, discrimination, harassment, retaliation, breach of contract, wage and hour violations, any individual claims under the California Private Attorneys General Act ("PAGA"), and torts such as invasion of privacy, assault and battery, or defamation. Such disputes also include claims that the Company might bring against me such as, for example, theft of money or trade secrets, breach of confidentiality agreement, or breach of contract; the Company and I each specifically waive our respective rights to bring such claims against the other in a court of law and to have a trial by jury. By signing below, I expressly waive the right to bring a class or collective claim seeking any relief on behalf of others unless such waiver is prohibited by controlling law.

(Sullivan Decl., ¶¶ 10-11, Exhs. 1-2, § 1.)

Plaintiff's Complaint alleges leave discrimination, retaliation and failure to prevent discrimination and retaliation. The Arbitration Agreement expressly requires the parties to arbitrate "all disputes that might arise out of or be related in any way to [Plaintiff's] application for employment and/or employment by the Company," including, without limitation, claims for "discrimination" and "retaliation." (Sullivan Decl., ¶¶ 10-11, Exhs. 1-2, §1.) Defendant asserts that Plaintiff's claims "arise out of" and are "related … to" his employment with the Company and therefore fall squarely within the Arbitration Agreement's broad scope.

The Court finds Defendant has met its initial burden to demonstrate the existence of the agreement to arbitrate and the burden therefore shifted to Plaintiff to "demonstrate that an arbitration provision cannot be interpreted to require arbitration of the dispute" or that the agreement is otherwise unenforceable. (*Coast Plaza Doctors Hospital v. Blue Cross of California, supra,* 83 Cal.App.4th at pp. 686-87.)

Plaintiff challenges the Agreement on a number of bases, including that Defendant is not a party to the Agreement, Plaintiff did not sign the Agreement, the FAA does not apply, and to the extent the Agreement exists, it is unconscionable. The Court will address each argument in turn.

2. Challenges to Arbitration

Defendant is a Party to the Agreement

Because arbitration is a matter of contract, the basic rule is that one must be a party to an arbitration agreement to be bound by it or invoke it—with limited exceptions. (*Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111, 118. Internal citations omitted.) An entity seeking to compel arbitration must generally establish it is a party to an arbitration agreement. (*Jarboe v. Hanlees Auto Grp.* (2020) 53 Cal.App.5th 539, 549. Internal citations omitted.) However, the party moving to compel arbitration need not make an evidentiary showing of the agreement's validity, and need not provide evidence that it is legally entitled to enforce an agreement signed under a registered fictitious name ("DBA") unless the DBA is challenged. (*Kostandian v. Am. Honda Motor Co.* (2026) 120 Cal.App.5th 872. Internal citations omitted.) Nothing shows the fictitious business name statutes create a special evidentiary burden for compelling arbitration when a DBA is used. (*Ibid*.)

In *Kostandian*, the Court of Appeal held that while the entity seeking to compel arbitration was not an expressly named party in the document containing the agreement to arbitrate, in its motion to compel, the entity had alleged it was doing business as the party named in the agreement. (*Ibid*.) Further, the Court held that the complaint contained a judicial admission that the entity was doing business as the party named in the agreement and hence had conceded to the truth of allegations that the named party in the agreement was the registered DBA of the entity, and the entity was thus a party to the lease. (*Ibid*.)

Similarly here, the Motion to Compel was supported by a declaration stating the party named in the agreement "Toyota Marin" was the DBA of Price Cars SR, LLC (see Stonhaus Decl., ¶ 1), Plaintiff's Complaint contained a judicial admission alleging the same (see Compl., ¶ 1), and once opposing party challenged the DBA, the moving party provided evidence in Reply demonstrating that the party named in the agreement was the registered DBA of moving party (See Reply RFJN Nos. 1-2).

This is sufficient to show Defendant was a party to the Arbitration Agreement.

Defendant Sufficiently Authenticated Plaintiff's Signature on the Agreements

A party seeking to compel arbitration is not required to authenticate plaintiff's signature on the arbitration agreement and meets their initial burden by attaching a copy of the purported arbitration agreement bearing plaintiff's electronic signature to their petition. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) However, once plaintiff challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic. (*Id.*)

Here, Plaintiff has challenged the validity of the signature in his opposition. This triggers the burden for Defendant to show by a preponderance of the evidence that the signature was authentic.

<u>Legal Standard to Authenticate Signature</u>

"Under Civil Code section 1633.7, an electronic signature has the same legal effect as a handwritten signature. [citation.]" (*Ruiz v. Moss Bros. Auto Grp*. (2014) 232 Cal.App.4th 836, 843.) "Civil Code section 1633.9 addresses how a proponent of an electronic signature may authenticate the signature—that is, show the signature is, in fact, the signature of the person the proponent claims it is. The statute states: '(a) An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.' (Civil Code, § 1633.9(a).)" (*Ruiz, supra*, 232 Cal.App.4th at p. 843.)

In *Espejo* the parties' dispute over whether defendants established the existence of an arbitration agreement turned almost exclusively on whether the supplemental declaration sufficiently authenticated plaintiff's electronic signature on the agreement containing the arbitration provision. (*Espejo, supa*, 246 Cal.App.4th 1047.)

In that case, plaintiff filed his opposition to the petition arguing that defendants failed to properly authenticate his electronic signature on the agreement. In his accompanying declaration, Espejo stated he did not "recall seeing or accessing the [agreement containing the arbitration provision]... at the time I signed the employment contract," and did not recall ever signing the [agreement containing the arbitration provision], "electronically or otherwise. (*Id.,* at p. 1054.) I specifically recall that I typed out my name and submitted my electronic signature only once– when I signed the employment contract." (*Ibid.)* Espejo further stated that his "custom and practice" was to "review documents before I sign them," and he therefore did not believe he would have signed the [agreement containing the arbitration provision], an eight page document, one minute after signing the employment contract. (*Id*.) Espejo also contended he had never seen the R&R prior to the lawsuit and recalled accessing only the employment contract through the online Applicant Homepage. (*Id*.)

Defendants replied with additional details regarding the electronic review and signature process for their employee agreements. Specifically, they provided evidence showing an email is generated to the applicant with a link to the applicant homepage. Access to the applicant homepage "requires the use of a private and unique username and password," both of which are provided by phone "directly and orally to the applicant." (*Id*., at 1053) After logging into homepage with this username and password, "the first thing plaintiff would be required to do is re-set his password to one of his own choosing. He cannot proceed to the next page unless he re-sets his password." (*Id*.) At that point, according to defendants, plaintiff would have to "opt to agree to complete the employment documents using an electronic signature." (*Id*.) Once he agreed, he would be directed to the portion of the homepage containing the four hyperlinks to his employment agreement, the [agreement containing the arbitration provision], the R&R, and a benefits handbook. (*Id*.) "Plaintiff only had access to these documents by logging in and using his unique user name and password." (*Id*.)

"On the signature page of the employment agreement plaintiff was prompted to either accept or decline the employment agreement." (*Id*., at p. 1054) If he accepted, "he was prompted to complete his name as he would sign it. Whatever name he typed into this entry is what populated on the signature line of the contract." (*Id*.) "Once that information was input and accepted by plaintiff, then the employment agreement was finalized, including his name, date, time, and the IP address where he electronically signed the agreement." (*Id*.) The "name Jay Baniaga Espejo could have only been placed on the signature pages of the employment agreement and the DRP by someone using Dr. Espejo's unique user name and password.... Given this process for signing documents and protecting the privacy of the information with unique and private user names and passwords, the electronic signature was made by Dr. Espejo" to the employment agreement and the DRP at the date, time, and IP address listed on the documents. (*Id*., at p. 1063.) Defendants therefore concluded that the copies of the employee agreement and the [agreement containing the arbitration provision] attached to defendants' petition were true and correct copies of the documents “electronically signed by Dr. Espejo on May 22, 2011, and kept and maintained in SCPMG's records.” (*Id*.)

The *Espejo* court found that given the process for signing documents and protecting the privacy of the information with unique and private usernames and passwords, etc., the details satisfactorily met the requirements articulated in *Ruiz* and established that the electronic signature on the agreement was “the act of” plaintiff” and therefore provided the necessary factual details to properly authenticate the document. (*Espejo, supra,* 246 Cal.App.4th at p. 1060–63.)

<u>Evidence of Authentication in the Underlying Case</u>

Here, moving party provides evidence that each employee is assigned a unique username and password associated with their individual Paylocity account. (Clevenger Decl., ¶ 5.) These credentials are known only to the employee and are required to access their account. (*Ibid*.) When an Arbitration Agreement is issued, the employee receives an email notification containing a link directing them to the Paylocity website. (*Id.,* ¶ 6.) To access the Arbitration Agreement, the employee must log into their Paylocity account using their unique username and password. (*Ibid*.) Once logged in, the employee can review the Arbitration Agreement. (*Ibid.*) To electronically sign the Arbitration Agreement, the system requires the employee to complete specific steps, including their name into a designated text field and providing an electronic signature, which may be created by drawing it with a cursor. (*Id.,* at ¶ 7.) Access to the signature mechanism is controlled by Paylocity’s authentication system. (*Id.,* at ¶ 8.) Only a user who has successfully logged in with the employee’s unique credentials can complete the signature fields and affix a name to the signature line. (*Ibid*.)

This is sufficient to authenticate the signature.

The FAA Applies

Here, Plaintiff challenges the Motion on the ground that moving party has not made a sufficient showing of a transaction evidencing interstate commerce. However, while the FAA does apply to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement. (*Barrera v. Apple Am. Grp. LLC* (2023) 95 Cal.App.5th 63, 76. Internal citations omitted.)

Here, the Arbitration Agreement provides that any arbitration will be governed by the Federal Arbitration Act (“FAA”) and, to the extent not inconsistent, the California Arbitration Act, and that the arbitrator’s decision will be final and binding on the parties. (Sullivan Decl., ¶¶10-11, Exhs. 1-2, §§ 6–7.)

Nor does the exemption in section 1 of the FAA preclude application of the FAA. (9 U.S.C.A. § 1 [nothing herein contained shall apply to contracts of employment of seamen, railroad employees, or any other class of workers engaged in foreign or interstate commerce].) When the FAA was enacted, to “engage” meant to “take part in” something or to be “employ[ed]” or “involve[d]” in that thing … And “interstate commerce” meant “[t]raffic,” “intercourse,” or “the transportation of persons or property between or among the several states ... or from or between points in one state and points in another state." (*Flowers Foods, Inc. v. Brock* (2026) 608 U.S. ______, 146 S. Ct. 1358.) In *Flowers* the court explained that the exemption applies to workers whose work plays a direct and necessary role in the free flow of goods across borders. (*Id.*) Here, the only evidence is that Plaintiff's work concerns the processing and servicing of goods, not their interstate movement. There is no evidence that Plaintiff's work involved transporting goods, loading or unloading shipments, or otherwise participating in the physical movement of goods across state lines, etc.

Accordingly, the FAA applies.

The Agreement is Unconscionable

Unconscionability is a generally applicable contract defense that may render an arbitration agreement unenforceable under the FAA. (*Doctor's Assocs., Inc. v. Casarotto* (1996) 517 U.S. 681, 687.) It is generally determined according to the laws of the applicable state.

The unconscionability defense has been recognized by the United States Supreme Court as a general contract defense in California, and therefore a defense to an agreement to arbitrate. (*Fisher v. MoneyGram Int'l, Inc.* (2021) 66 Cal.App.5th 1084, 1093. Internal citations omitted.)

1. Applying the unconscionability defense to an arbitration agreement in California is not preempted by the FAA. (*Ibid*.)

Unconscionability is commonly defined as "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (*Ibid.*) Unconscionability, as the definition suggests, has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Ibid.*) Procedural and substantive unconscionability must both be present for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability, but they need not be present in equal parts. (*Ibid.*) Rather, California courts employ a sliding scale to determine unconscionability, the more substantively oppressive the contract terms, the less evidence of procedural unconscionability is required to conclude the terms are unenforceable, and vice versa. (*Ibid.*)

2. Procedural Unconscionability

Procedural unconscionability exists when the stronger party drafts the contract and presents it to the weaker party on a take-it-or-leave-it basis. (*Carlson v. Home Team Pest Def., Inc.* (2015) 239 Cal.App.4th 619, 631. Internal citations omitted.) However, the fact that the arbitration agreement is an adhesion contract does not render it automatically unenforceable as unconscionable. (*Ibid.*) Instead, to determine whether an arbitration agreement satisfies the "procedural element of unconscionability," courts focus on "two factors: oppression and surprise." (*Ibid.*) "Oppression" arises from an inequality of bargaining power which results in no real negotiation and "an absence of meaningful choice." (*Ibid.*) "Surprise" involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in the prolix printed form drafted by the party seeking to enforce the disputed terms. (*Ibid*.)

Plaintiff argues the Agreements are procedurally unconscionable because they are standardized, pre-printed forms purportedly presented on a take-it-or-leave-it basis after Plaintiff states that he accepted employment with Defendant and as a condition to retaining his employment. (See Oppo. p. 14:21-24; See Plaintiff's Decl., ¶ 8 [From time to time throughout my employment, PRICE CARS SR, LLC would present me documents to sign. There was never any room to negotiate to any of the terms of the documents. Rather, I was told I had to sign the documents as a condition of my employment].) The court has no reason to believe that this statement from the employee is untrue.

Defendant counters that the Arbitration Agreement here was not a mandatory condition of employment because Plaintiff was not required to sign it to obtain or keep his job. (Sullivan Decl., ¶13 [Plaintiff could have elected not to sign the arbitration agreement as it was not a condition of employment]; Clevenger Decl., ¶9 [Employees are not required or forced to sign the agreement, and no adverse action is taken if an employee declines to sign].) Here too, the court has no reason to believe that this statement from the employer is untrue.

Defendant does not provide any facts demonstrating Plaintiff knew he did not have to sign, nor does the Agreement itself state that signing was optional and Plaintiff could continue his employment without signing.

On this basis the Court does find a small degree of procedural unconscionability. Nevertheless, "procedural unconscionability alone does not invalidate a contract." (*Nelson v. Dual Diagnosis Treatment Ctr., Inc.* (2022) 77 Cal.App.5th 643, 662.)

3. Substantive Unconscionability

"Substantive unconscionability" addresses the fairness of the term in dispute; substantive unconscionability traditionally involves contract terms that are so one-sided as to shock the conscience, or that impose harsh or oppressive terms. (*Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 956.)

Here, Plaintiff challenges the agreement as substantively unconscionable because of scope and mutuality. The agreement provides:

> 1. TOYOTA MARIN ("the Company") and I agree to utilize binding, individual arbitration to resolve all disputes that might arise out of or be related in **any way to my application for employment and/or employment by the Company**. Such disputes include, but are not limited to, claims I might bring against the Company for wrongful termination, discrimination, harassment, retaliation, breach of contract, wage and hour violations, any individual claims under the California Private Attorneys General Act ("PAGA"), and torts such as invasion of privacy, assault and battery, or defamation. Such disputes also include claims that the Company might bring against me such as, for example, theft of money or trade secrets, breach of confidentiality agreement, or breach of contract; the Company and I each specifically waive our respective rights to bring such claims against the other in a court of law and to have a trial by jury. By signing below, I expressly waive the right to bring a class

or collective claim seeking any relief on behalf of others unless such waiver is prohibited by controlling law.

3. My agreement to **arbitrate claims against the Company** includes claims I might bring against the Company's parent, subsidiaries, affiliates, customers, or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiaries, affiliates, customers, or client entities**. I also agree to arbitrate claims pursuant to the terms of this Agreement against any person or entity I allege to be a joint employer with the Company as well as claims brought against staffing companies, employee leasing companies, professional employer organization or payroll processing vendors that the Company has utilized.**

(Sullivan Decl., Exs. 1, 2.)

In *Cook* the agreement required Cook to arbitrate any and all claims she may have against [employer] "or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise." (*Cook v. Univ. of S. California* (2024) 102 Cal.App.5th 312, 326. The arbitration agreement at hand also includes independent entitles that are not the employer.

SCOPE. The disparity of influence between and employer over its employee has been recognized in that employment contracts provide a "margin of safety" that grants extra protections to the party with superior bargaining power if there is a legitimate commercial need to do so. (See, *Stirlen v Supercuts* (1997) 51 Cal.App.4th 1519, 1536.)

The arbitration agreement at hand goes beyond protecting the Defendant however in that, based on the express language, it also forces the Plaintiff to "arbitrate claims" it has against joint employers with the company, as well as staffing companies, leasing companies, professional employer organizations and payroll companies the Defendant has used. The phrase "arbitrate claims" in ¶3 is limited to "claims brought against the company". The paragraph does not explain if those same claims also apply to the list of third parties listed in ¶3.

It is difficult to understand how, as a condition of employment, the Plaintiff must give up the right to sue entities that are independent of the Defendant. A lawsuit against a joint employer may target that joint employer alone for example, and not involve the Defendant at all. Also the phrase "professional employer organization" is not defined. Does this mean that if the employee is assaulted while attending a car-sales training seminar provided by a "professional employer organization" sponsored by the Defendant, that the arbitration language would force the tortfeasor into arbitration pursuant to ¶¶ 1 and 3 of the agreement?

On this basis, the broad scope of the agreement renders arbitration clause unconscionable.

LACK OF MUTUALITY. In *Cook*, the agreement required Plaintiff to arbitrate any and all claims she may have against the Defendant "or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise." However, the agreement did not require the employer's "related entities" to arbitrate their claims against Plaintiff. *Cook* at 327.

Here too, the employer requires the Plaintiff to "arbitrate claims" against possible joint employers and other independent entities, and it is unclear whether it requires those joint employers and other vendors to arbitrate claims against the Defendant's employees.

On this basis, the lack of mutuality of the agreement renders arbitration clause unconscionable.

The Motion to Compel Arbitration is DENIED.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009240

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: NICHOLAS BUTLER

vs.

DEFENDANT: PODS ENTERPRISES, LLC, A FLORIDA LIMITED LIABILITY COMPANY

NATURE OF PROCEEDINGS: DEMURRER

RULING

The demurrer of defendant PODS Enterprises, LLC to the second, third, and fourth causes of action is overruled.

I. Background

Plaintiff Nicholas Butler alleges that Defendant delivered a defective portable storage container that permitted water intrusion and mold contamination, resulting in widespread mold damage to his personal property.

II. Legal Standard

"'… A general demurrer will lie where the complaint "has included allegations that *clearly* disclose some defense or bar to recovery."' A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. 'To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.' The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law." (*Simple Avo Paradise Ranch, LLC* v. *Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 288-289, citations omitted.)

A. Second Cause of Action – Breach of Covenant of Good Faith and Fair Dealing

Defendant argues that, to the extent Plaintiff is asserting this claim in tort, there is no remedy in tort for breach of the covenant of good faith and fair dealing outside the insurer-insured context. In opposition, Plaintiff states that he is not asserting this as a tort cause of action.

To the extent this cause of action is brought as a contract claim, Defendant argues that it is duplicative of the first cause of action for breach of contract. In *Careau & Co.* v. *Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395, the court explained:

> …[A]llegations which assert such a claim [for breach of the implied covenant] must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement. Just what conduct will meet this criteria must be determined on a case by case basis and will depend on the contractual purposes and reasonably justified expectations of the parties.
>
> If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated. Thus, absent those limited cases where a breach of a consensual term is not claimed or alleged, the only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery.

The Court finds that the cause of action is not duplicative.

- In the first cause of action, Plaintiff alleges that Defendant breached the contract by providing a defective unit that was not suitable for safely storing and transporting his property.
- In the second cause of action, Plaintiff alleges that Defendant provided a unit that it knew had prior water intrusion issues.

The breach alleged in the first cause of action could be prompted by "an honest mistake, bad judgment or negligence," while in this cause of action Plaintiff alleges that Defendant's conduct was "conscious and deliberate."

The demurrer as the second cause of action is OVERRULED.

J. Third Cause of Action – Negligence

Defendant argues that the cause of action is barred by the economic loss rule. The Court disagrees.

Plaintiff alleges Defendant negligently caused damage to his personal property. "…[T]here is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen* v. *Wells Fargo Bank, N.A.* (2022) 12 Cal.5^{th} 905, 922, citations omitted.) Defendant argues that it owed no duty to Plaintiff aside from its contractual duty. As the Supreme Court explained in *Rattagan* v. *Uber Technologies*, *Inc.* (2024) 17 Cal.5th 1, 19, "'"[t]he law imposes the obligation that 'every person is bound without contract to abstain from injuring the person or property of another…' [and] [t]his duty is independent of the contract ....""" As the Court also explained, a failure to perform a contract can be a tort. (*Ibid.*) In this case, Plaintiff is not seeking financial harm unaccompanied by property damage.

The demurrer to the third cause of action is OVERRULED.

K. Fourth Cause of Action – Breach of Implied Warranty

Defendant argues that this cause of action fails because the transaction did not involve the sale or lease of goods and because PODS expressly disclaimed any implied warranties.

1. <u>No Sale or Lease of Goods</u>

Defendant contends that the transaction involved the lease of real property, not any "good." Defendant points to the definition of "self-service storage facility" in Business and Professions Code section 21701, subdivision (a), to show that it includes the pod. That section states as relevant:

"Self-service storage facility" means real property designed and used for the purpose of renting or leasing individual storage space to occupants who are to have access to the space for storing and removing personal property or for storing individual storage containers provided to occupants who have exclusive use of the container for the purpose of storing and removing personal property, whether or not the individual storage containers are transported pursuant to Section 21701.1. …

The Court does not agree with Defendant that this shows that the container itself is real property.

The self-storage facility is real property "designed and used…for storing individual storage containers provided to occupants…" Thus, the real property is the location where the storage container is stored. This conclusion is supported by subdivision (a) of section 21701.1, which provides that "[t]he owner or operator of a self-service storage facility…may, for a fee, transport individual storage containers to and from a self-service storage facility that he or she owns or operates. …" This makes clear that the container itself is not considered the "self-service storage facility."

2. <u>Disclaimer</u>

Paragraph 13 of the contract between Plaintiff and Defendant states as relevant:

> **NO REPRESENTATIONS OR WARRANTIES. To the maximum extent allowed by applicable law, Company hereby disclaims any implied or express warranties, guarantees, representations of the nature, condition, safety or security of the Unit and the Facility, <u>including any warranties of merchantability or fitness for a particular</u>**

<u>use or purpose</u>.

(Ex. 1 to complaint.)

Defendant cites Commercial Code section 2316, subdivision (2) to show that Plaintiff's claim is barred by a disclaimer in the parties' contract. In opposition, Plaintiff argues that Civil Code section 1668 precludes Defendant from relying on the disclaimer. The Court finds that Plaintiff's allegations are sufficient to avoid application of the disclaimer.

In *Klein* v. *Asgrow Seed Co.* (1966) 246 Cal.App2d 87, 100-101, the court concluded that section 1668 rendered a limitation of liability provision void where the cross-defendant made an express warranty with knowledge of its falsity. In *Continental Airlines, Inc.* v. *McDonnell Douglas Corp.* (1989) 216 Cal.App.3d 388, 404, the court held that "a cause of action for negligent misrepresentation is included within the meaning of the word 'fraud' in section 1668."

The Court finds that Plaintiff's allegations sufficiently allege a negligent fraud forming the basis of his implied warranty claim. Plaintiff alleges that Defendant represented, through its marketing and representations to consumers, that its storage containers are suitable for protecting personal property from weather and moisture. (¶34) The allegations in paragraphs 10-12 (other than the last sentence which the court assumes is what Plaintiff noticed after the unit was returned to him) are sufficient to show that the representation was made "'"without reasonable grounds for believing it to be true."'" (See *Borman* v. *Brown* (2021) 59 Cal.App.5^{th} 1048, 1060.)

The demurrer to the fourth cause of action is OVERRULED.

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